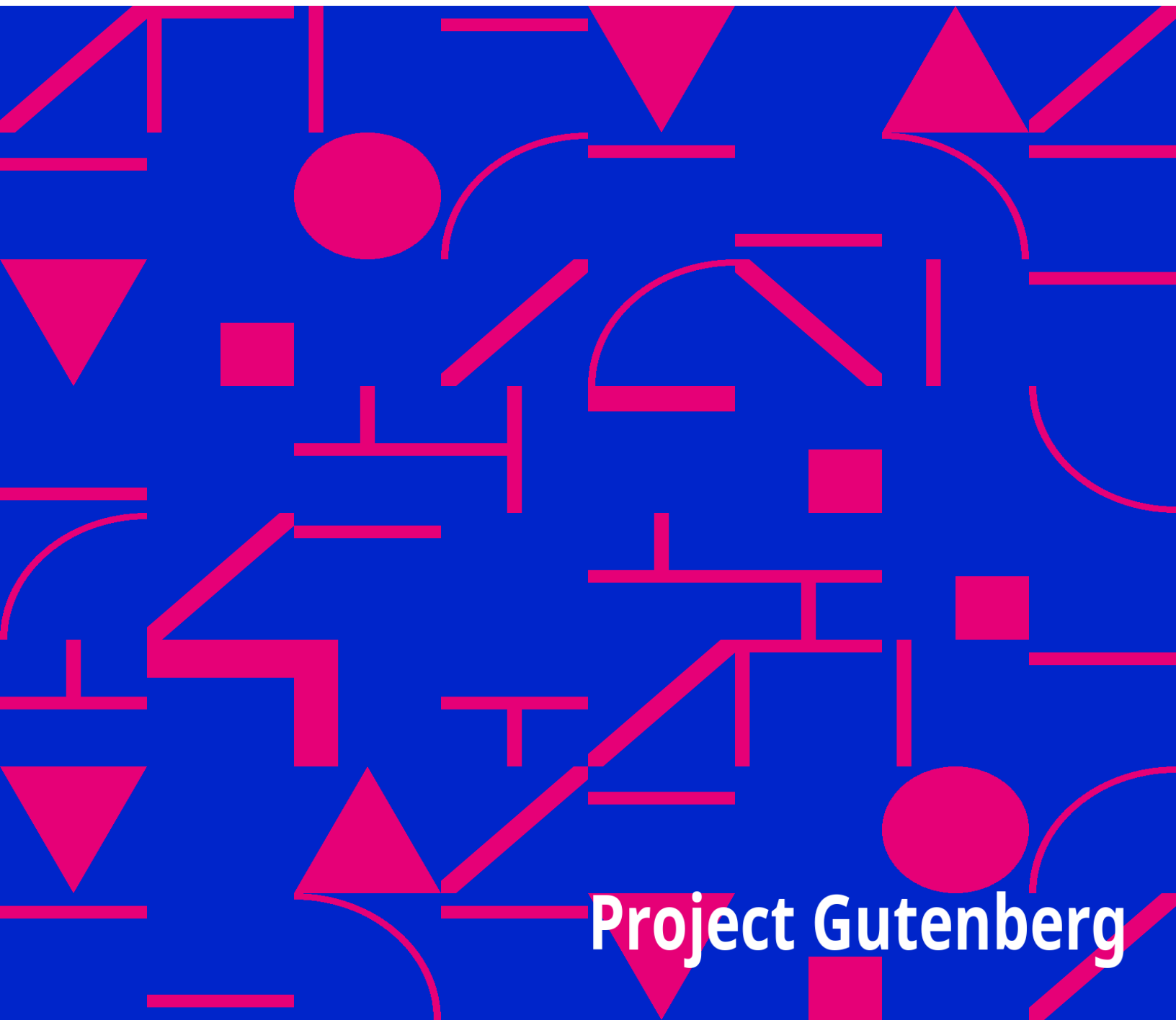


Notes and Queries, Number 137, June 12, 1852

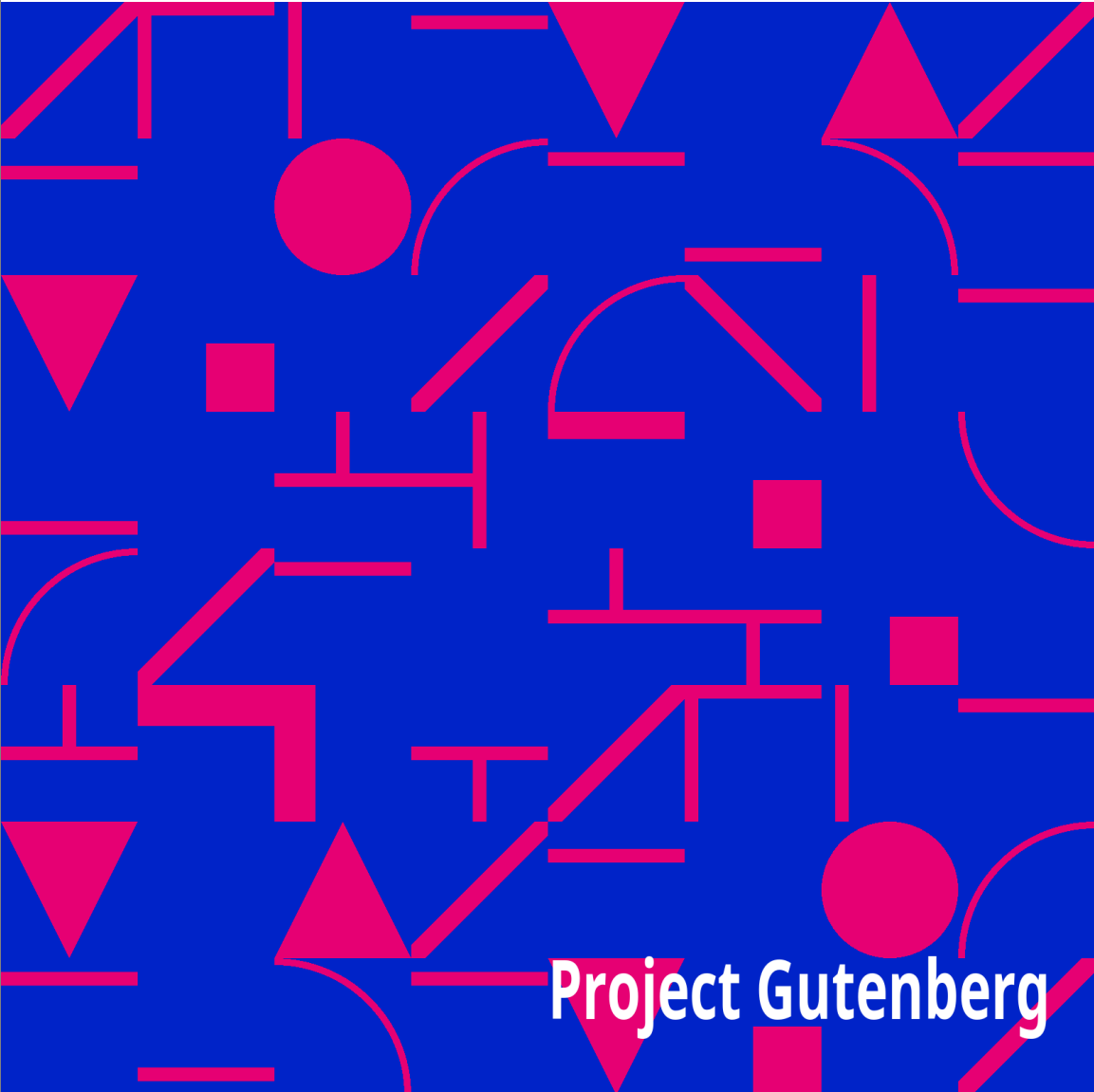
Various

A decorative background pattern consisting of various geometric shapes in magenta and blue. The shapes include circles, triangles, squares, rectangles, and lines, arranged in a complex, overlapping manner. The pattern is dense and covers the entire lower half of the page.

Project Gutenberg

**Notes and Queries, Number 137, June 12,
1852**

Various

A decorative geometric pattern consisting of various shapes in red and white on a blue background. The shapes include triangles, circles, squares, and lines, arranged in a complex, overlapping manner.

Project Gutenberg

The Project Gutenberg eBook of Notes and Queries, Number 137, June 12, 1852

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Notes and Queries, Number 137, June 12, 1852

Author: Various

Release date: February 7, 2013 [eBook #42039]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/42039

Credits: Produced by Charlene Taylor, Jonathan Ingram, Keith Edkins and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/Canadian Libraries)

*** START OF THE PROJECT GUTENBERG EBOOK NOTES AND
QUERIES, NUMBER 137, JUNE 12, 1852 ***

NOTES AND QUERIES:

**A MEDIUM OF INTER-COMMUNICATION
FOR LITERARY MEN, ARTISTS,
ANTIQUARIES, GENEALOGISTS, ETC.**

"When found, make a note of."—CAPTAIN CUTTLE.

Vol. V.—No. 137.

Saturday, June 12. 1852.

**Price Fourpence.
Stamped Edition
5d.**

CONTENTS.

NOTES:—	Page
John Goodwin's Six Booksellers' Proctor nonsuited, by James Crossley	553
Mr. Collier's Folio Shakspeare: A Passage in "As You Like It," by Samuel Hickson	554
Notes on Books, No. III.—Laurence Humphrey, President of Magdalen College, Oxford, and Dean of Winchester, by S. W. Singer	554
Scoto-Gallicisms	555
On a Passage in "Cymbeline," Act IV. Sc. 2., by S. W. Singer	556
Old Concert Bill, by Dr. E. F. Rimbault	556
Minor Notes:—Note for Mr. Worsaae—Singular Epitaph—Largesse—Brogue and Fetch—Taibhse— Derivation of "Caul"—"Pandecte," an entire Copy of the Bible	557
QUERIES:—	
Boy Bishop at Eton	557
"Speculum Christianorum multa bona continens," by W. Sparrow Simpson	558
Massacre of the Welsh Bards	558
Minor Queries:—Portrait of William Combe —"Quod non fecerunt barbari," &c.—Lines on English History—Windows—Angel-beast; Cleek; Longtriloo—Royal Arms in Churches—"Cease, rude Boreas"—Pictorial Proverbs—Inscription on George Inn, Wansted—Learned Man referred to by Rogers —Mormonism and Spalding's Romance—Carrs or Calves—Stoup—Casper Ziegler and the Diaconate —Inscription at Persepolis—"I do not know what the	558

truth may be"—Twittens—Clapper Gate—Jemmy—
Muffs worn by Gentlemen

REPLIES:—

St. Patrick, by D. Rock, &c. [561](#)

Nashe's "Terrors of the Night" [562](#)

Serjeant's Rings [563](#)

The Old Countess of Desmond [564](#)

A few Things about Richard Baxter, by Cuthbert
Bede [565](#)

St. Botulph [566](#)

Sir Richard Pole, the Father of Cardinal Pole [567](#)

Proclamations to prohibit the Use of Coal, by F.
Somner Merryweather [568](#)

Ralph Winterton [569](#)

Replies to Minor Queries:—Family of Bullen—
Wallington's Journal—The Amber Witch—Twyford
—The Ring Finger—Brass of Lady Gore—Gospel
Trees—"Who from the dark and doubtful love to
run"—Son of the Conqueror; Walter Tyrrel—Sir
Gilbert Gerrard—Fides Carbonarii—Line on
Franklin—Meaning of Royd as an Addition to
Yorkshire Names—Binnacle—Plague Stones—
Ramasshed—Yankee Doodle—"Chords that
vibrate," &c.—Derivation of Martinique—Anthony
Babington, &c. [569](#)

MISCELLANEOUS:—

Notes on Books, &c. [574](#)

Books and Odd Volumes wanted [575](#)

Notices to Correspondents [575](#)

Advertisements [575](#)

Notes.

JOHN GOODWIN'S SIX BOOKSELLERS' PROCTOR NONSUITED.

The London booksellers of the present day (good harmless men!) are satisfied with endeavouring to put down heresies as to discounts. Their predecessors, in the year 1655, set to work in good earnest, associated to purify the faith by denouncing in an Index expurgatorius, under the alarming titles of *A Beacon set on Fire*, and *A Second Beacon set on Fire*, all publications of a blasphemous, heretical, or improper kind. Six booksellers, viz. Luke Fawne, Samuel Gellibrand, Joshua Kirton, John Rothwell, Thomas Underhill, and Nathaniel Webb, took the lead on the occasion; and the battle waxed hot and fierce between them and the apologists of the books condemned. Amongst the latter was the famous John Goodwin, whose part in the controversy Mr. Jackson, in his elaborate Life of him, has adverted to, and has noticed his pamphlet entitled *The High Presbyterian Spirit*, written in answer to the *Second Beacon Fired*. John Goodwin, however, published a second pamphlet in the same controversy, neither noticed by Mr. Jackson, nor any one else that I am aware of, in which he finishes up his first charge upon the unfortunate booksellers, and lays on them with a vigour and determination that it does one good to see so well bestowed, scattering their arguments and quotations to the winds, and sending them back to their proper occupation of printing and publishing, instead of clipping and suppressing. The title of this very rare pamphlet, which is to be found in vol. xviii. of a collection of tracts (between 1640 and 1660) in ninety-six vols. 4to., made by President Bradshaw, and containing many of his MS. notes and observations now in my possession, is as follows:

"Six Booksellers' Proctor Nonsuited, wherein the gross Falsifications and Untruths, together with the inconsiderate and weak Passages found in the Apologie for the said Booksellers, are briefly noted and evicted. And the said Booksellers proved so unworthy both in their Second

Beacon Fired, and likewise in their Epistle written in Defence of it, that they are out of the Protection of any Christian or reasonable Apologie for either. By J. G., a Minister of the Gospel of Jesus Christ. London printed for H. Cripps and L. Lloyd, 1655, 4to., pages 23."

I might give an extract or two from this very interesting tract, but do not wish to trespass too much upon your space. Perhaps, next to Milton, there is no writer of the time of the Commonwealth equal to John Goodwin, in power and elevation of composition; and I am glad therefore to be able to add one more to the series of his pamphlets which his biographer has with so much industry and research enumerated at the close of the Life.

JAS. CROSSLEY.

MR. COLLIER'S FOLIO SHAKSPEARE: A PASSAGE IN "AS YOU LIKE IT."

It appears to me so obvious that the degree of authority to be conceded to each particular correction or emendation in Mr. Collier's folio Shakspeare must depend in a great measure on the general character of the proposed alterations throughout the work, that I cannot help thinking it would be desirable to reserve all controversy on such points until after the appearance of the promised volume. Such a resolution I made for myself, and to it I shall religiously adhere. This much only I shall say, that, of the specimens given by Mr. Collier in the *Athenæum*,—sufficient at once to excite interest and to gratify curiosity,—some of the corrections appear to be of that nature that no conjecture could have supplied, while all are good enough to command a deferential consideration.

Your correspondent A. E. B. has attempted a defence of the original reading of two passages amended in Mr. Collier's folio. For the reason above given I shall neither answer your correspondent, nor even say whether I think him right or wrong; but it will not be overstepping the bounds I have prescribed myself, if I take up a collateral point he has raised in reference to one of these passages. To strengthen the case for the reading of the passage in *Cymbeline*, Act III. Sc. 4., "Whose mother was her painting," he cites a

passage from *As You Like It*, Act III. Sc. 5., in which he says, "*mother* is directly used as a sort of warranty of female beauty!" Here is the passage:

"Who might be your mother,
That you insult, exult, and all at once,
Over the wretched?"

Shakspeare was, if I am not mistaken, one of those persons to whom a *mother* was, as some one expresses it, "the holiest thing alive." He concentrates this sentiment in the words of Troilus (*Troilus and Cressida*, Act V. Sc. 2.):

"Let it not be believ'd for womanhood:
Think we had mothers."

And again, in those of Palamon (which I have no doubt are Shakspeare's) in the *Two Noble Kinsmen*, Act V. Sc. 1.:

"I have been harsh
To large confessors, and have hotly ask'd them
If they had mothers? I had one, a woman,
And women t'were they wrong'd."

Now it seems to me that the same feeling is implied in Rosalind's reproof to Phebe; and that there is no ground whatever for saying that *mother* is used as a warranty for *female beauty*, but rather as one for feminine qualities. Rosalind in effect says, "who might your mother be that you should be so unfeeling?" And, as she tells her plainly she sees no beauty in her, it is clearly to be inferred that it must have been for some other quality that her mother was to be "warranty." Rosalind, in other words, might have said, "Had you a mother, a woman, that you can so discredit the character of womanhood as to exult, insult and all at once, over the wretched?"

It might however be contended, that Rosalind's question referred to the rank, condition, or personal appearance of the mother. The latter only bears upon this question; and with regard to that it may be said, that if beauty had been transmitted to the daughter (independently of the questioner having decided *that* it had not), the question was not needed. Rosalind, in short,

seeks for a better cause for Phebe's pride or want of feeling than her own insufficient attractions, in the nature or quality of her mother. It will be observed that, in this view, I have conceded that *who* may be taken with something of the signification of *what*; but the answer to the question, taken strictly, must be the name of some individual who might be known to the Querist, and be in some measure a warranty for the disposition of the daughter, though for no personal beauty but her own.

SAMUEL HICKSON.

**NOTES ON BOOKS, NO. III.—LAURENCE HUMPHREY,
PRESIDENT OF MAGDALEN COLLEGE, OXFORD,
AND DEAN OF WINCHESTER.**

In the year 1558 a handsome volume was printed at Basle, in folio in Greek, by Jerome Frobenius and Nicholas Episcopus, with the following title:

"ΚΕΡΑΣ ΑΜΑΛΘΕΙΑΣ, Η ΩΚΕΑΝΟΣ. ΤΩΝ ΕΞΗΓΗΣΕΩΝ
ΩΜΗΡΙΚΩΝ, ἐκ τῶν τοῦ Ἑυσταθείου παρεκβολῶν
συνηρμοσμένων—*i.e.* Copiæ Cornu sive Oceanus Enarrationum
Homericarum, ex Eustathii in eundem commentariis concinnatarum,
Hadriano Junio autore."

To an Oxford man, independent of its merit as a compendium of the prolix comment of Eustathius, this volume should be especially interesting, on account of the prefatory dissertation "*Ad Magdalinenses*," entitled *De Græcis Literis et Homeri Lectione et Imitatione*, by Laurence Humphrey. This worthy was sometime Greek reader in the university, but went abroad on account of religion at the accession of Queen Mary, and did not return until happier times after her death. He seems to have been living at Basle with Frobenius and Episcopus *in honestissimo loco*, but he could not avoid often thinking of his native land,—of Newport-Pagnell in Bucks, where he was born,—of Cambridge, where he received the rudiments of Latin and Greek,—but more especially of Oxford, where he completed his education. His feeling panegyric of his Alma Mater, shows him to have been at least one of her grateful sons. The dissertation is highly creditable to him,

considering the period at which it was written; and the passage in which he gives an account of the work is not devoid of interest.

"For the rest we give not Homer alone, but the Expositor Eustathius is subjoined. Yet not entire but reduced into a compendium by a man of untiring labour and noble learning—Hadrian Junius, not unknown to you,—for he lived some time in England, dedicated his Greek Lexicon to our royal Edward the Sixth, and has since published the *Annals of Queen Mary*, his *Animadversiones*, and *Centuries Adagiorum*, which issued from the press of Frobenius: he also effected this good work. Therefore although I had rather have the whole of Eustathius than the half, and to say the truth Epitomes never pleased me, yet because this author is prolix, and difficult to meet with, this perfect compendium of such an estimable work (which seems to me to be the best interpreter, poetical-elucidator, Greek lexicon, and onomasticon), will be useful to any one. I recommend, then, our Eustathio-Junian Homer to you."

In 1560 Laurence Humphrey seems to have been still at Basle; for in that year he printed at the press of Oporinus, in 12mo., a work which he dedicates to Queen Elizabeth, entitled *Optimates, sive de Nobilitate, ejusque Antiqua Origine, Natura, Officiis, disciplina, et recta Christiana Institutione*; at the end of which he printed the argument of Philo-Judæus, περὶ εὐγενείας, with a Latin version. This found favour in the eyes of an English translator, and it was printed at London by Thomas Marshe in 1563, 16mo., under the following title:—

"The Nobles, or of Nobilitye. The original, duties, ryght, and Christian Institucion thereof, in three Bookes. Fyrste eloquentlye written in Latine by Laurence Humphrey, D. of Divinity and Presidente of Magdaleine College in Oxforde, lately Englished. Whereto, for the reader's commoditie and matters affinitye, is coupled the small treatyse of Philo a Jewe. By the same Author out of Greek Latined, now also Englished."

Antony à Wood gives a list of the writings of Laurence Humphrey, among which is a life of Bishop Jewell in Latin: he also speaks highly of his scholarship and proficiency in theology. After his return from abroad he became Regius Professor of Divinity at Oxford, and President of his

college. In 1570 he was made Dean of Gloucester, and ten years afterward Dean of Winchester. His divinity was strongly tinged with Calvinism, but he was a zealous and able defender of the Reformation. His death occurred in 1589-90.

S. W. SINGER.

SCOTO-GALLICISMS.

The following list of Scottish words derived from the French language is chiefly taken from the pages of the *Scottish Journal*, a small weekly periodical, published at Edinburgh, which came to a conclusion, after rather less than a year's existence, in the summer of 1848. It is generally supposed that most of these words were introduced during the time of Queen Mary's minority, when French troops were sent to Scotland; but the first appearance of some of them may unquestionably be referred to an earlier period. Perhaps some of the readers of "N. & Q." may be able to communicate other examples, which, however, as a reference to Jamieson's *Scottish Dictionary* will show, are by no means very numerous.

Aschet. A large flat plate for meat. Fr. Assiette, a trencher plate.

Aumrie or *Almerie*. A cupboard; also, a place in churches and monasteries where the sacred vessels and alms were deposited. (*Dunbar*.) Fr. Armoire, aumonerie.

Braw or *Bra'*. Fine, handsome, gaily dressed. (*Burns*.) Fr. Brave.

Bonaillie. A parting glass with a friend going a journey. (*Wallace*.) Fr. Bon allez.

Butterie Bejan (or *Bajan*). A term applied to a "freshman," or student of the first year, at the Universities of St. Andrews and Aberdeen. Fr. Butor, a booby or clod; and Bejaune, a novice. (*Lamont's Diary*, p. 114., note.)

Certie, *Certy*—*By my*. By my troth. Fr. Certes, certainly.

Cummer or *Kimmer*. A gossip. (*Kelly*.) Fr. Commère.

Dour. Hard or obstinate. (*Douglas*.) Fr. Dur.

Fasheous. Troublesome. (*Baillie*.) Fr. Facheux, facheuse.

Flunkie. A livery servant. Old Fr. Flanchier; same signification as henchman (haunchman). (*Quart. Rev.*, vol. lxxix. p. 344.)

Fracaw. Noise or uproar. Fr. Fracas.

Gardevine or *Gurdyveen*. A large bottle, and sometimes a cellaret, for holding wine. Fr. Garde-vin.

Gardylloo. A cry formerly raised by servants in Edinburgh, when they threw dirty water, &c. from the windows after ten at night. (*Smollett*.) Fr. Garde de l'eau.

Goo. A particular taste or savour. Fr. Goût.

Grange. A granary, &c. (used also in English). Fr. Grange.

Grosert, *Groser*, or *Groset*. A gooseberry. (*Burns*.) Fr. Groseille.

Gud-brither. Brother-in-law. Fr. Bon-frère.

Haveril. A simpleton, or April-fool. (*Burns*.) Fr. Avril.

Jalouse—*To*. To suspect. (*Antiquary*.) Fr. Jalouse.

Jigot. The hip-joint of lamb or mutton (used also in English). Fr. Gigot.

Jupe. A woman's mantle or pelisse. Fr. Jupe, a long coat.

Kickshaws. A made-up dish. Fr. Quelque chose.

Multiplepoinding. An action in Scottish law, somewhat similar to the English bill of interpleader in Chancery. Fr. Multiplie-poindre.

Multure or *Mouter*. The fee for grinding grain. (*Douglas*.) Fr. Mouture.

Onding. A heavy fall of rain or snow. Fr. Ondée(?).

Petticoat tails. A species of cake baked with butter, sometimes called "short-bread." (*Bride of Lammermoor*.) Fr. Petits gâtelles (more correctly, gateaux).

Ruckle or *Rickle*. A heap or collection. Fr. Recueil.

Servite or *Servet*. A table napkin. (*Spalding*.) Fr. Serviette.

Verity—Chair of. A pulpit. Fr. La chaire de vérité. (Croker's *Boswell's Johnson*, p. 513.)

Vizzie, *Vizy*, or *Visie*. A scrutinising view, aim, or sight at the muzzle of a gun. (*Bride of Lammermoor*.) Fr. Visée, aim.

Wallees or *Valises*. Saddlebags. (*Godscroft*.) Fr. Valise, a portmanteau.

E. N.

ON A PASSAGE IN "CYMBELINE," ACT IV. SC. 2.

It is so usual with Malone and some other commentators on Shakspeare to impute the errors of the printer to the poet, that we often find the most glaring instances of false grammar, and anomalies of construction, laid to his charge, and defended as the practice of the time; and as his own practice!

The following passage is an instance in point:

"*Gui*. Why, he but sleeps;
If he be gone, he'll make his grave a bed;
With female fairies will his tomb be haunted,
And worms will not come to thee."

Steevens with reason says:

"This change from the second person to the third is so violent, that I cannot help imputing it to the players, transcribers, or printers."

He proposed to read *him* for *thee*. Malone of course defends the absurdity. We may, however, be assured that it is not attributable to the poet. Whoever reads the passage with attention will perceive that the allusion in the last line is not to Fidele, but to the fairies haunting his tomb. It should be remembered that it was held that no noxious creatures would be found where fairies resort.

The compositor, as in other cases, mistook the word, probably written "thē," and printed "thee" for "them."

Your correspondent MR. HALLIWELL having noticed my approval of the emendation of a passage in *Coriolanus*, found in MR. COLLIER's copy of the second folio, where "bosom multiplied" is happily corrected to "bissom multitude," perhaps I may be permitted to say that I cannot subscribe to his opinion, that "it is one of those alterations which no conjectural ingenuity could have suggested." To me it appears that the steps are obvious by which any intelligent reader of the poet might be led to make the correction. The word which was mistaken by the printer for "bosome" occurs in a previous scene of the play, where it is "beesome" in the folios; and a recollection of this would naturally lead to the conjectured emendation. Indeed the word appears to have been not unfrequently written "beasom," as we find it in Huloet's *Dictionary*. The word "multitude" would suggest itself to any attentive reader of the play, from its repeated occurrence in the 3rd Scene of Act II.: and we must always suppose the writer to have been intent upon correcting errata. The correction of "infuite comming" to "infinite cunning," in *Measure for Measure*, is, in my mind, an instance quite equal in "conjectural ingenuity;" and we know that we owe it to that of the late Mr. Sidney Walker.

I must candidly confess that the specimens of the corrections given by MR. COLLIER in his first two communications to the *Athenæum* gave me the same dissatisfaction and apprehension that MR. HALLIWELL appears to have entertained; but I do not draw the same inference that gentleman seems to do, from the occurrence of this one truly happy conjectural emendation. It

is, however, sufficient to convey a favourable notion of the acuteness of the writer of the emendatory notes, and nothing more.

S. W. SINGER

OLD CONCERT BILL.

The following curious bill (the original of which is in my possession) of a benefit concert given by Signor Carbonelli, at Drury Lane Theatre, in 1722, will enable us to form some opinion of the musical taste prevailing in London in the first quarter of the eighteenth century:

"DRURY LANE THEATRE.

May 4.

SIGNOR CARBONELLI'S CONCERT.

ACT I.

A New Concerto for Two Trumpets, composed and performed by Grano and others.

A New Concerto, by Albinoni, just brought over.

Song, Mrs. Barbier.

Concerto, composed by Signor Carbonelli.

ACT II.

A Concerto, with Two Hautbois and Two Flutes, composed by Dieupart.

A Concerto on the Base Violin, by Pippo.

Song, Mrs. Barbier.

By desire, the *Eighth Concerto* of Arcangelo Corelli.

ACT III.

Concerto, by Carbonelli.

Solo on the Arch-lute, by Signor Vebar.

Song, Mrs. Barbier.

New Concerto on the Little Flute, composed by Woodcock, and performed by Baston.

Solo, Signor Carbonelli.

Finale. Concerto on Two Trumpets, by Grano and others."

I should mention, that Signor Carbonelli was a celebrated violin player, and a favourite pupil of Corelli. He was brought over to this country by his patron, the first Duke of Rutland.

EDWARD F. RIMBAULT.

Minor Notes.

Note for Mr. Worsaae.—At page 204. of *The Danes in England*, Mr. W. says:

"Towards Glasgow and Edinburgh the mountains are no longer called 'fell' and 'rigg.'"

The *Campsie Fells*, a fine range of hills within nine miles of Glasgow, are an exception. These hills are never spoken of by the natives of the strath except by the name of "fells" and the singularity of the name has often been remarked to the writer of this note, especially by visitors to the valley. Before being much acquainted with the deeds of the Vikings (except in the *general*), he had come to the conclusion that the name *must* be Danish, from its similarity to "Fjeld," with which, in connexion with "Fiords," he had become familiar at a very early period.

BRUNO.

Singular Epitaph.—The following epitaph occurs in Braunston churchyard, Northamptonshire:

"To the Memory of WILLIAM BORROWS, Died 1703.

"'Tis true I led a single life,
And Nare was married in my life,
For of that Seck (*sic*) I nare had none:
It is the Lord; his will be done."

CRANMORE.

Largesse.—I heard this old word used the other day in Northamptonshire, by a servant who was leaving his employer, and who called upon one of his master's tradesmen to ask him for *largisse*, as he termed it. Certainly the peasants have preserved and handed down to the present time a vast number of old words, customs, and legends. It proves how much they owe to oral tuition.

A. B.

Brogue and Fetch.—There are a certain set of words which have become naturalised in English, by those who speak it in Ireland; as, *amadan*, a fool; *brogue*, a shoe (Ir. *brog*); *palaver*, fine speaking, soft talk (Ir. *pi-labhradh*). These are all Irish words; but there are others which are not English, and yet it is hard to make them out Irish. *Brogue*, meaning a broad Irish accent, is an instance; *fetch* is another:

"In Ireland (says Mr. Banim) a *fetch* is the supernatural *fac-simile* of some individual, which comes to assure to its original [or his friend or relative] a happy longevity or immediate dissolution. If seen in the morning, the one event is predicted; if in the evening, the other."

Taibhse (pr. *thaivshe*) is the Irish word, and perhaps *fetch* might be derived from it by a sort of metathesis.

EIRIONNACH.

Derivation of "Caul."—

"Guianerius, cap. 36., *De Ægritud. Matr.*, speaks of a silly, jealous fellow, that, seeing his child new born, included in a *kell* (meaning a *caul*), thought sure a Franciscan, that used to come to his house, was the father of it, it was so like the friar's *cowl*, and thereupon threatened the friar to kill him!"—Burton's *Anatomy of Melancholy*, part iii. sec. 3.

By this may we judge that *caul* and *cowl* are cognate? *Coif* (Martial.), in Latin *Reticulum*; whence a lady's *reticule*.

B. B.

"Pandecte," an entire Copy of the Bible.—Dr. Maitland, in his valuable essays on the *Dark Ages*, has drawn attention to this use of the word *Pandecte*, but was not at the time aware that it is so employed by any writer before Alcuin (p. 194. n. 9. ed. 1844). It will be found, however, in the following, extract from Bede's *Chronicon* (in *Monument. Britan.*, p. 101. A). The historian is speaking of certain presents which his abbot, Ceolfrith, was

carrying with him on his pilgrimage to Rome, when death cut it short at Langres:

"Qui inter alia donaria quæ adferre disposuerat, misit ecclesiæ S. Petri *pandectem* a B. Hieronymo in Latinum ex Hebræo vel Græco fonte translatum."

C. H.

St. Catharine's Hall, Cambridge.

Queries.

BOY BISHOP AT ETON.

In Heywood's edition of the *Statutes of King's College, Cambridge, and Eton College* (Longman, 1850), a MS. is quoted under the title of *Consuetudinarium vetus Scholæ Etoniensis* (sic), Harl. MSS. 7044, p. 167. From a MS. in Corpus Christi College, Cambridge.

It is a sort of *Fasti Etonenses*, recording in somewhat quaint terms the old customs which were then traditionary in the school. In the month of November, according to this authority, "in die Sti Hugonis Pontificis solebat Etonæ fieri electio Episcopi Nihilensis, sed consuetudo obsolevit."

Again, in the statutes as given by Mr. Heywood, p. 560., it is provided that on the Feast of St. Nicholas, but "nullatenus in festo Sanctorum Innocentium," the Episcopus puerorum Scholarium, who was to be elected from among the boys every year for the purpose, might celebrate all the divine offices except the "missæ secreta."

Can you, or any of your correspondents, inform me—

1st. What is the date of the MS. in question, with any further particulars of its history?

2nd. What is "Pope St. Hugo's Day," and whether it was in any way connected with the election of the boy bishop in other places as well as Eton?

3rd. Whether any reason can be assigned why Holy Innocents Day, being that on which the boy bishop was usually appointed, should have been expressly excluded by the founder.

L. C. B.

"¶ SPECULUM CHRISTIANORUM MULTA BONA CONTINENS."

I have a small black-letter tract which bears the above title: I am desirous of learning the author's name, and that of the printer, together with the date and place of its production. It extends from signature A 1 to G 8, and ends abruptly on the verso of G 8 without any colophon. On the verso of the title page is a small woodcut representing the Holy Dove hovering over the Virgin, who is surrounded by nine kneeling figures, all under a depressed arch, supported by two pillars whose shafts have a kind of chevron ornament worked on them, somewhat similar to the pillars of the crypt of Canterbury Cathedral. Perhaps if I give the title-page of this curious little tract in extenso, it will be more easily identified:

"¶ Speculum Christianorum multa bona continens. Primo modo.

- ¶ De preceptis dei
- ¶ De septem vitiis capitalibus
- ¶ De septem virtutibus his contrariis
- ¶ De octo tabulis: cum quibusdam oronibus deuotissimis
- ¶ De modo se preparandi ad sacramentum eucharistie
- ¶ De effectu sacramenti
- ¶ De antichristo
- ¶ Expositio oronis duice: cum quodam bona notabili
- ¶ De Ramis. vii. viciis capitalibus: et eorum remediis
- ¶ De contentu mundi: cum aliis notabilibus."

It should be noted that this table of contents is by no means a fair representative of the subjects on which the pamphlet treats. On the verso of page E iii. is the following curious passage:—

"¶ Peccata britanorum et causa depositionis eorum. Negligentia prelatorum | rapina potentum | cupiditas indicum | rabies periuriorum | inordinatus cultus vestimentorum: detestanda luxuria | omne peccatum publicum & notorium clamatur vindicta ad deum. Sed precipue quattuor: merces mercenarii, peccatum sodomiticum, homicidium, oppressio innocentium. Heu heu heu quot clamores vindicte sunt nunc ante deum."

This passage is introduced without any farther connexion with the subjects under discussion, than the mere heading of the section gives it. Permit me to trouble you with one more extract, before I leave my Query in the hands of your readers:

"¶ De duabus scalis: una dirigente ad celum:
et altera ad infernum.

¶ Scala ad celum	¶ Scala ad infernum
Perseverantia bona	Desperatio
Patientia in adversis	Obstinentia in peccatis
Obedientia in preceptis	Furor in adversis
Patientia in vita	Iniusticia facti
Cotritio et cofessi pcti	Odiu boni et dilectio pcti
Cognito tui	Ignorantia
Caritas	Malicia."

On the recto of C vj.

Any information which some of your bibliographical correspondents may give concerning this little work, will be very acceptable.

W. SPARROW SIMPSON, B.A.

MASSACRE OF THE WELSH BARDS.

Barrington, in his *Observations upon the Statutes*, raises some historic doubts whether that massacre of the Welsh bards, upon which Gray founded his magnificent ode, actually occurred:—

"But", he says, "a manuscript history, written by Sir John Wynne of Gwydir, authorises the supposed tradition of a massacre of the bards; nor could the writer of that most admirable ode have made his bard so warmly express, or his reader feel, the tyranny of Edward, if he had not probably raised an indignation and fire in his own breast, and by reading of other materials, which *I have not happened to meet with.*"

Has the question of this real or pretended massacre been raised, or proved beyond doubt?

As to Gray requiring "materials" for his fancy, poets even of inferior genius contrive to weave a web out of airy nothings, and the liveliest description by an old Cymric bard of the slaughters of the thirteenth century, will not carry conviction of the truth of the narrative in the nineteenth.

H. T. H.

Minor Queries.

Portrait of William Combe.—Lonsdale the portrait painter, in a letter dated January, 1826, addressed to a friend of Combe whilst living, says:

"I shall be much obliged if you will have the goodness to cause my picture of the late Mr. Combe to be sent to me. Mr. C. borrowed the picture of me to show to some friend, and kept it till his death."

Can any of the readers of "N. & Q." inform me in whose possession the portrait now is, and whether any engraving of Combe's portrait from that or any other picture is now to be obtained?

E. T.

"Quod non fecerunt barbari," &c.—Who is the author of the epigram—

"Quod non fecerunt barbari, fecerunt Barbarini,"

which commemorates the destruction of the Coliseum at Rome, both by the barbarians who overran Italy about the middle of the fifth century, and, at a later period, by certain Popes of the family of the Barberini?

HENRY H. BREEN.

St. Lucia.

Lines on English History (Vol. iii., p. 168.; Vol. v., p. 405.).—I shall be extremely obliged to MR. EDWARD CHARLTON to procure me, if he can, a copy of the above lines, and forward them, through Mr. Bell, to

AN ENGLISH MOTHER.

[We should also be most glad to receive from any correspondent who can supply it, the *Metrical and Logical History*, asked for by our lamented correspondent MÆRIS, which commences—

"William and William, and Henry and Stephen,
And Henry the Second to make the First even."

ED.]

Windows.—It has been said that the dates of many houses may be ascertained by a comparison of the regulations of the window-tax with the windows. The tax occasioned a marked change of style by diminishing the number of windows. Then ingenuity was exerted to effect evasions by bays, bows, and double or treble windows. These again were successively met by alterations in the law. Could any one be induced to let in some light upon the subject by examining the acts of parliament, and illustrating the result by reference to examples in London houses?

C. T.

Angel-beast; Cleek; Longtriloo.—Can you, or any of your readers, inform me what was the nature of the game at cards called *Angel-beast*, which was in vogue in the seventeenth century? Also, the game of *Cleek*; can it be a misprint of "Check?" Also, *Longtriloo*; is this an abbreviation of "Long three card loo?"

R. B.

Royal Arms in Churches.—What is the origin of the common practice of putting up the royal arms in churches?

E. M.

Oxford.

"Cease, rude Boreas."—Can any of your correspondents tell me why the song, "Cease, rude Boreas," has been occasionally attributed to Falconer. I remember seeing this song appended to an old edition of the *Shipwreck*, with a prefatory remark stating that G. A. Stevens *could* not have written it, as the moral of the verses was of too high an order for him. Occasionally the last stanza is omitted, on account of the sentiment being somewhat questionable; though it cannot be denied that the feelings there expressed are exactly those of a sailor. In a few copies another stanza of a very different tendency is inserted in its place; and at times I have seen the commencement of the third stanza altered thus:

"Now all you at home in safety,
Shelter'd from the howling storm,
Tasting joys by heaven vouchsaf'd ye,
Of our state vain notions form."

I should wish to obtain some information regarding the authors of these alterations, and when they first took place.

Βορέας.

Pictorial Proverbs.—I have now lying open before me a small 12mo. book (binding modern) containing sixty-seven old prints (averaging in size 5¾ by 3¾ inch), but wanting a title-page. The subjects appear to be in the shape of pictorial proverbs; they are evidently very old, the distich before each plate is in Latin, which is again written in old German. The views in each background are places generally in Germany, and the names are written on the plate itself. In *one only* plate I discover the name "M. Merian, fe" (Qy. Matts. Merian, or his daughter, of Frankfort?); and in some few others the following mark, "§." All the plates *seem* done by the same person.

If you can enlighten me as to the authorship of them, I shall feel much obliged.

H. S. S.

Inscription on George Inn, Wansted.—Will you kindly give me information respecting the origin of the following inscription, which is affixed to the side of the George Inn at Wansted?—

"In memory of y^e cherry pey,
As cost half a guiney.
y^e 17 of July,
That day we had good cheer,
I hope to see it maney a year.
1752. DAVID JERSEY."

W. H. B.

Learned Man referred to by Rogers.—Rogers, in his work on the Thirty-nine Articles, published 1607, writes as follows:—

"A certain learned man (speaking of the religion here then professed, and writing unto the lords of our late queen's council) doth say 'He' (meaning the papist his adversary, who charged our church with discord, and disagreements about matters of religion), 'he ought' (saith he) 'if he had been able, to have brought out the public confession and

articles of faith, agreed in K. Edward's time; and have showed any in England, that, professing the gospel, dissenteth from the same."

I shall be much obliged to any of the readers of "N. & Q." who can inform me who was this "certain learned man."

C. C. C. C.

Corp. Chr. Coll., Camb.

Mormonism and Spalding's Romance.—The extraordinary spread of Mormonism seems to stamp it as likely to prove a kind of second Mahometanism in the world's history. Under these circumstances the origin of the *Book of Mormon* is of course a literary curiosity. In a clever pamphlet entitled *Mormonism Exposed*, by John Bowes (E. Ward, 54. Paternoster Row, London), at pp. 30, 31. an account of the history of the book of Mormon is given. Mr. Bowes quotes from *Mormonism Unveiled*, by E. D. Hoare, to the effect that a Mr. "John Spalding" affirms that his (now deceased) brother "Solomon Spalding" had written "*an historical romance* of the first settlers in America, endeavoring to show that the American Indians are the descendants of Jews, or the lost tribes. It gave a detailed account of their journey from Jerusalem, by land and sea, till they arrived in America, under the command of NEPHI and LEHI; he also mentions the Lamanites." Mr. J. Spalding, it is said, on reading the *Book of Mormon*, "to his great surprise," found "nearly the same historical matter, names, &c., as they were in his brother's writings;" and further says "according to the best of my recollection and belief, it is the same as my brother Solomon wrote, with the exception of the religious matter." The latter is obviously taken from the Bible, with alterations and additions *ad libitum*.

Can any of your readers tell whether this romance of Solomon Spalding's was ever published; or whether it is still in existence, and accessible for reference, &c.?

C. H. D.

Carrs or Calves.—In 1 Esdras v. 55. there occurs the word *carrs*. This is found in all copies of the Bible to which I have access, except one edited in the last century by a Mr. Butley, of Ch. Ch. Oxon, where *calves* is read, and

a note given from Josephus apparently in support of it. I should be glad to know whether there is any authority in the original for this alteration.

ERYX.

Stoup.—There is a holy-water stoup, in good preservation, on the *exterior* of the north wall (by the nave door) of the church of Houghton-le-Spring, Durham. What other examples are there of *exterior* stoups? Their usual situation was *within* either the porch or the church.

CUTHBERT BEDE.

Casper Ziegler and the Diaconate.—There is a book in Latin with the following title:—*Casparis Ziegleri de Diaconis et Diaconissis Veteris Ecclesiæ Liber Commentarius*. Wittebergæ: Sumptibus Hæredum Jobi Wilhelmi Fingelii. Anno 1678.

What copies of this book are known to be extant? Would a translation of the whole, or selected parts, be useful at the present time, when attention is being called to the subject?

What particulars are known about the life, religion, &c. of the author? At the foot of the frontispiece are the following lines:—

"Omnis in hoc vultu vasti compendia juris,
Cæsarii, sacri, Saxonique vides.
Non Divæ unius tam multum crede laborem,
Cujus vix umbram pingere possit homo."

Can any one give me the meaning of the last two lines? or information as to what other authors have treated on the subject of the Diaconate?

W. H.

Inscription at Persepolis.—The following curious inscription I some years ago made a note of by copying it, but neglected to mark whence I obtained it. My extract stands thus—

Arabic Inscription.

dicas	scis	dicit	scit	audit	expedit
-------	------	-------	------	-------	---------

facias	potes	facit	potest	facit	credit
credas	audis	credit	audit	credit	fieri potest
expendas	habes	expedit	habet	petit	habet
judices	vides	judicat	videt	judicat	est
non	quodamque	nam qui	quodcunque	sæpe	quod non

It is said this was found by Captain Barth, engraven on marble, among the ruins of Persepolis, and by him translated from the Arabic into Latin and English.

Query, What does it all mean?

THOMAS LAWRENCE.

Ashby-de-la-Zouch.

"*I do not know what the truth may be.*"—Will some one tell me whence the lines—

"I do not know how the truth may be;
I tell the tale as told to me"?

W. T. M.

Hong Kong.

Twittens.—Are not the narrow passages in Brighton so called? and what is the meaning?

A. C.

Clapper Gate.—Steps, with a gate above, into Bushy Park are so called; what is the meaning?

A. C.

Jemmy.—When and why was sheep's head baptized with the name "Jemmy?" Does it apply to the entire sheep, or to the head only? I have heard of a "James's head" as a refinement of "Jemmy's head," which would make it seem as though the sheep was the "Jemmy."

SHIRLEY HIBBERD.

Muffs worn by Gentlemen.—Whilst looking over Hogarth's works, I observed in two plates a male figure wearing a muff; in the "Rake's Progress," pl. 4., and in the "Woman Swearing a Child." How long, and within what limits, did this fashion flourish?

W. SPARROW SIMPSON, B.A.

Replies.

ST. PATRICK.

(Vol. v., p. 520.)

Allowing himself to be led astray by such an untruthful guide as Ledwich, your correspondent E. M. R. thinks that "there seems to be very great doubt if St. Patrick ever existed in reality." Had E. M. R. sought for, he might have found evidences of Ireland's apostle's existence beginning with the very lifetime itself of that saint. 1st. We have a short work from St. Patrick's own pen, the *Confessio*, which the best critics have allowed to be genuine: it commences thus: "Ego Patricius peccator," &c. 2nd. A very old hymn, shown by Dr. O'Connor to have been written c. A.D. 540 (*Prol. in Rer. Hib. Vet. Script.*, p. lxxxix.), tells us that: "Patricius prædicabat Scotis." (*Ib.*, p. xciii.). 3rd. The Irish monk Adamnan, who died A.D. 704, that is, almost a half century before our Bede, in his *Life of St. Columba*, says: "Quidam proselytus Brito homo sanctus, sancti Patricii episcopi discipulus," &c. (*AA. SS. Junii*, t. ii. p. 197.). 4th. In the library of C. C. College, Cambridge, there is a MS. of the seventh century, containing the early Irish canons: "Synodus episcoporum id est Patricii, Auxillii, Issernini" (Nasmith's *Cat. C. C. C.*, p. 318.). 5th. The Antiphonal, once belonging to the Irish Bangor, but now in the Ambrosian Library, Milan, a MS. of the end of the seventh or beginning of the eighth century, and published by Muratori, has a "hymnum Sancti Patricii magistri Scotorum" (Muratori, *Anecd.*, t. iv. p. 89.). 6th. Cummian, writing about the Pascal question to the Abbot of Hy, A.D. 634, says: "Primum (cyclum) illum quem sanctus Patricius Papa noster tulit," &c. (*Vet. Epist. Hibernicarum Syl.*, ed. Usserio, p. 21.). 7th. In the very old Litanies, once used, as it seems, by some church among the Britons living in this island beyond the reach of Anglo-Saxon control, we find invoked St. Patrick, along with SS. Brindane, Gildas, Paterne, Guinwaloc, Munna, Tutwal, German, and other lights of the Irish, as well as our ancient British church (ed. Mabillon, *Vet. Analect.*, p. 168.). 8th. St. Gertrude, Abbess of Nivelles, died on the 17th March, A.D. 658; the writer of

her life was her cotemporary, and he expressly mentions St. Patrick (*Vita S. Gertrudis*, ed. Mabillon. AA. SS. O. B., t. ii. p. 447.). 9th. Our own Beda *did* insert St. Patrick's name in the Martyrology which he drew up (ed. Smith, *Bedæ Hist. Eccl.*, p. 351.); and another far-famed countryman of ours, Alcuin, who, in some verses which he composed for being placed "Ad aram SS. Patricii et aliorum Scotorum," says:

"Patricius, Cheranus, Scotorum gloria gentis,
Atque Columbanus, Congallus, Adomnanus atque," &c.
Opp. ed. Frobenio, t. ii. p. 219.

10th. A liturgical MS. in the British Museum, Nero, A, II. fo. 35. b., which was first printed by Spelman, who calls it "codex vetustissimus" (*Concil.*, i. 176.), speaks of St. Patrick as "archiepiscopus in Scotiis et Britanniis" (*Ib.*, 177.). 11th. The celebrated monastery of St. Gall (an Irish saint) still possesses the fragment of what was once a missal, and written in the Irish character. This codex must have been older than the ninth century, for it is set down "inter libros Scottice scriptos" in a catalogue of the books belonging to that library, made in the ninth century. Among the saints enumerated in the canon of the mass is Patrick the bishop, "intercedentibus pro nobis beatis apostolis Petro et Paulo et Patricio æpiscopo" (see the fragment in *Appendix A to Cooper's Report*, p. 95.).

PYRRHO has had, and is likely always to have, followers in every age and country: Hardouin would not allow that Virgil ever lived, but stoutly held that the *Æneid* was "a fardel of monkish fictions" put together during the middle ages: not "the bigoted Anglo-Saxons" of the eighth, but Dr. Ledwich of the eighteenth century, denied the existence of the great St. Patrick; a few weeks ago a correspondent of "N. & Q." asked "Is not the battle itself (of Waterloo) a myth?" (Vol. v., p. 396.); and last week, another tells us that "the saint (Patrick) certainly vanishes into 'an airy nothing,' if we are to credit the above authors" (Dr. Ledwich and Dr. Aikin).

Who the Aikin may be, or what the work of his which E. M. R. has brought forwards, I do not know; Ledwich's book now lies before me, and a more prejudiced writer I have never met with. I think, however, that from the above authorities it is clearly shown that, together with all the most learned

of early and modern times, we are still warranted in treating St. Patrick "as a real actor in Irish ecclesiastical affairs."

D. ROCK.

Buckland.

Sir James Ware—St. Patrick's Birth-place (Vol. v., p. 520.)—Permit me to correct your correspondent E. M. R., who, by a strange mistake, calls Sir James Ware "a Roman Catholic writer." He was a zealous member of the church of Ireland: E. M. R. will see a memoir of him in Harris's edition of Ware's *Writers of Ireland*.

With respect to the birth-place of St. Patrick, your correspondent may consult Colgan's *Trias Thaumaturga*, *Append. quinta ad vitas S. Patricii*, cap. ii. p. 221. et seq.; also the Life of St. Patrick by Harris in his edition of Ware's *Bishops of Ireland*; and Dr. Lanigan's *Ecclesiastical History of Ireland*.

Ledwich was entirely unacquainted with the sources of Irish history, and is no authority.

T.

Trin. Coll. Dublin.

NASHE'S "TERRORS OF THE NIGHT."

(Vol. v., p. 467.)

MR. EASTWOOD'S quotation from Nashe's *Terrors of the Night* regarding the use of ale for the sacrament in Iceland, may have some light thrown upon it by the following passages from the Icelandic sages and the learned editors of the *Historic Memorials of Greenland*. We doubt if Nashe was correct in saying that ale was granted for that purpose by the Pope in preference to wine, on account of the "incessant frosts there;" for, in truth, the Icelanders of the present day, as well as in former times, have no difficulty in protecting liquids much more congealable, such as milk, from the winter's frost. The abundance of warm springs, and the volcanic fires throughout the island, render the temperature of the inhabited districts of Iceland much

warmer in winter than would be supposed from its high northern latitude. The word "red emayle" no doubt means "red enamel," an apt simile enough, and well understood in the writer's days. We do not find any mention of "ale" ("öl") being ever used in Iceland for the celebration of the eucharist; but a wine seems to have been prepared from the Crowberry (*Empetrum nigrum*), as is shown by the following extract from Bishop Paul's *Saga*, a nearly cotemporary history; for the *Saga* in question is believed to have been written by Bishop Magnus Gissurson (1215-1237), who succeeded Bishop Paul in the see of Skalholt:—

"In Bishop Paul's days came Bishop John from Greenland to Iceland, and remained during the winter in the eastern fiords; but afterwards he journeyed late in Lent (*langaföstu*, long fast time) to Skalholt to meet Bishop Paul, and he came there on Maunday Thursday (*Skírdegi-Skjærtorsdag*), and these two bishops consecrated a large store of Chrism, and had besides many confidential and learned conversations. Bishop John taught the people to prepare wine from the crowberry (*krækiberium*), as he himself had been instructed by King Sverrer. But it so happened that the next summer few berries grew in Iceland; but a man called Erick, who lived on a farm called Snorrastade, near Skalholt, prepared a small quantity of the wine from these berries, which succeeded well that summer."—Pp. 186, 187.

We confess that we are much inclined to agree with the learned Eggert Olafsen's doubts as to the practicability of manufacturing a wine, to suit at least our palates, from the acrid fruit of the *Empetrum nigrum*. It is said that Boerhaave, gives a receipt for this purpose, and we have accordingly found it in his forty-second *Process of the Elementa Chemicæ*, but this relates to the general mode of producing wine from fruits; and Olafsen (p. 172. vol. i.) tried it in vain with the crowberry when in Iceland in 1753. Still a species of subacid drink, such as still prepared from this fruit by the Icelanders, may have been dignified in olden times with the name of wine; but Olafsen was certainly in error when he stated that Bishop Paul brought over to Iceland, according to tradition, a native of the Canary Isles, to teach the art. The Canary Isles were not then (A.D. 1203) known to Europe.

About the year 1186 King Sverrer forbade the importation of wine into Bergen by the German traders, on account of the scenes of drunkenness and riot that ensued therefrom; and he is said to have turned his attention to the preparing of a home-made wine from the crowberry, as a substitute for the foreign liquors he had forbidden. The learned editors of the *Historic Memorials of Greenland*, in a note on the passage above quoted in Bishop Paul's *Saga*, remark, that this was probably the kind of wine which is traditionally said to have been used for the sacrament in Iceland when the true juice of the grape could not be obtained. Huidtfeldt, in his Chronicle, positively states that the Northmen in 1250 and 1290 sought and obtained permission from the Pope to use mead, "mjod" (mulsum), and other similar liquors, in the celebration of the sacrament, in consequence of the great scarcity of wine in those countries. The editors further state that "within our own times, during the disastrous war with England, it was proposed to employ wine made from bilberries for the same purpose in Iceland."

The Synod of Roeskilde, according to Pontoppidan, *Annal. Eccles. Dan.* ii. 329. and iii. 538., forbids the use of any liquor but pure wine in the sacrament in the following words:—

"Pastores sunt admoniti ad communionem uti, non *musto* aut aliis liquoribus illicitis, sed puro vino, juxta institutionem."

Lastly, in Rymer's *Fædera*, vol. x. p. 762., there is a petition from the Bishop of Skalholt to the English government in 1440, stating the depressed state of the commerce of Iceland at that period, and that no *wine, beer, or indeed any liquor* except milk and water, was to be found in the country. Such was its wretched condition, that he expresses his fear, unless supplies were received from England, divine service, the celebration of the communion, and of baptism, would soon cease.

From this last document it would seem that *wine* was no longer made in Iceland from the crowberry, and that the fermented juice of the grape was deemed absolutely necessary by the bishop of that day for the celebration of the sacrament. We are not aware of any decree or bull of the court of Rome, by which any other liquor than that obtained from the grape was permitted to be used, as such would be entirely contrary to all the canons of the church, and the opinions of all her theologians.

EDWARD CHARLTON.

Newcastle-on-Tyne.

The following quotation bears upon your correspondent J. EASTWOOD's Query:—

"Gregorius episcopus, &c.
[Sigurdo archiepiscopo] Nidrosiensi.

Tuæ fraternitati quærenti, an deficienti in quibusdam ecclesiis suffragancorum tuorum eucharistia propter frumenti penuriam simplex oblata undecumque confecta populo, ut sub quadam decipiatur pietatis specie, ac cervisiæ vel potus alius loco vini, cum vix aut nunquam vinum reperiatur in illis partibus, sint tradenda, taliter respondemus, quod neutrum est penitus faciendum, cum in hujus modi sacramento visibilis panis de frumento et vini de uvis debeat esse forma in verbo creatoris per sacerdotis ministerium consecrata, quod veritatem carnis et sanguinis non est dubium continere, quamquam dari possit populo panis simpliciter benedictus, prout in quibusdam partibus fieri consuevit. Datum Viterbii v. Idus Maii, pontificatus nostri anno undecimo." (A.D. 1237.)—*Diplomatarium Norvegicum*, p. 14.: Christiania, 1847.

Emayle is no doubt enamel, used for ice, or frozen wine. *Chevela* is answered in the Query. I may add a letter from the same Pope to the same Archbishop on baptism in ale:—

"Cum, sicut ex tua relatione didicimus, nonnunquam propter aquæ penuriam infantes terræ tuæ contingat in cervisia baptizari, tibi tenore præsentium respondemus, quod cum secundum doctrinam evangelicam oportet eos ex aqua et spiritu sancto renasci, non debent reputari rite baptizati, qui in cervisia baptizantur. Datum Laterani, viii. Idus Julii anno xv." (A.D. 1241.)—*Ibid.* p. 21.

The curious in this matter may find the practice of baptising in other liquids than water denounced in other countries, in other bulls, and even by councils.

SERJEANT'S RINGS.

(Vol. v., pp. 92. 110. 181.)

I send you the mottoes adopted by serjeants and judges, taken from the Term Reports, being, with one exception, I believe, a perfect list from 1786 to the year 1832, when MR. COLMAN's list, in the 5th Volume of "N. & Q.," begins. That exception is Lord C. B. Richards, whose motto is not given. I have also made some additions to MR. COLMAN's list.

1786. G. Bond		<i>Hæreditas a legibus.</i>
1787. A. Thomson	}	<i>Reverentia legum.</i>
S. Le Blanc		
1788. Lord Kenyon	}	<i>Quid leges sine moribus.</i>
R. Clayton		
1794. S. Heywood	}	<i>Legum servi ut liberi.</i>
J. Williams ^[1]		
1796. A. Palmer		<i>Evaganti fræna licentiæ.</i>
S. Shepherd		<i>Legibus emendes.</i>
1799. J. Vaughan		<i>Paribus se legibus ambæ.</i>
J. Lens	}	<i>Libertas sub rege pio.</i>
J. Bayley		
1800. Sir J. Scott (Lord Eldon)		<i>Rege incolumi mens omnibus una.</i>
A. Chambre		<i>Majorum instituta tueri.</i>
W. D. Best		<i>Libertas in legibus.</i>
R. Graham	}	<i>Et placitum læti componite fædus.</i>
A. Onslow ^[2]		
1801. W. M. Praed		<i>Fæderis æquas dicamus leges.</i>
1802. Sir E. Law (Lord Ellenborough)		<i>Positis mitescunt sæcula bellis.</i>
1804. J. Mansfield		<i>Serus in cælum redeas.</i>

1805.	T. M. Sutton ^[3]	<i>Hic ames dici pater atque princeps.</i>
1807.	G. Wood	<i>Moribus ornes, legibus emendes.</i>
1808.	W. Manley	} <i>Pro rege at lege.</i>
	A. Pell	
	W. Rough	} <i>Traditum ab antiquis servare.</i>
1809.	R. H. Peckwell	
	W. Frere	
1812.	V. Gibbs	<i>Leges juraque.</i>
1813.	H. Dampier	<i>Consulta patrum.</i>
	J. S. Copley	<i>Studiis vigilare severis.</i>
	R. Dallas	<i>Mos et lex.</i>
1814.	J. B. Bosanquet	<i>Antiquam exquisite matrem.</i>
1816.	J. A. Park	<i>Qui leges juraque servat.</i>
	C. Abbott (Ld. Tenterden)	<i>Labore.</i>
	G. S. Holroyd	<i>Componere legibus orbem.</i>
	J. Burrough	<i>Legibus emendes.</i>
	J. Hullock	<i>Auspicium melioris ævi.</i>
1817.	W. Firth	<i>Ung loi, ung roi, ung foi.</i>
	W. Garrow	<i>Fas et jura.</i>
1818.	W. Taddy	<i>Mos et lex.</i>
1819.	J. Richardson	<i>More majorum.</i>
	V. Lawes	} <i>Pro rege et lege.</i>
	J. Cross	
	T. D'Oyley	
1820.	T. Peake	<i>Æquâ lege.</i>
1824.	R. Gifford	} <i>Secundis laboribus.</i>
	W. Alexander	
	J. Littledale	<i>Justitæ tenax.</i>
	W. St. J. Arabin	} <i>Regi regnoque fidelis.</i>
	T. Wilde (L. Truro)	
	S. Gaselee	} <i>Bonis legibus, judiciis gravibus.</i>
	R. Spankie	

- | | | | |
|-------|------------------|---|---------------------------------|
| 1827. | T. Andrews | } | <i>More majorum.</i> |
| | H. Storks | | |
| | E. Lawes | | |
| | E. Ludlow | | |
| | H. A. Merewether | | |
| | W. O. Russell | | |
| | D. F. Jones | } | <i>Lex ratione probatur.</i> |
| | J. Scriven | | |
| | H. J. Stephen | | |
| | C. C. Bompas | | |
| 1828. | J. Parke | | <i>Justitiæ tenax.</i> |
| 1829. | E. Goulburn | | <i>Nulla retrorsum.</i> |
| | N. C. Tindal | | <i>Quid leges sine moribus.</i> |
| | W. Bolland | | <i>Regi regnoque fidelis.</i> |
| 1830. | W. E. Taunton | } | <i>Nec temerè nec timidè.</i> |
| | E. H. Alderson | | |
| | J. Patteson | | |

Omitted in List, Vol. v., p. 181.

- | | | |
|-------|----------------|------------------------------|
| 1833. | T. N. Talfourd | <i>Magna vis veritatis.</i> |
| 1841. | J. V. Thompson | <i>Nec ultrà nec citrà.</i> |
| | W. Wightman | <i>Æquam servare mentem.</i> |
| 1842. | C. Cresswell | <i>Leges juraque.</i> |
| 1844. | F. Pollock | <i>Jussa capessere.</i> |
| 1850. | Ld. Campbell | <i>Justitiæ tenax.</i> |
| | J. Jervis | <i>Venale nec auro.</i> |

Errata.

- | | | | |
|-------|--|---|-------------------------|
| 1843. | N. R. Clarke | } | For metuis read metuit. |
| | J. B. Byles | | |
| 1847. | For E. N. Williams read E. V. Williams;
and for libere read liberi. | | |

J. E.

In 1847 his son, Mr. Justice E. V. Williams, adopted the same motto.

Footnote 2:[\(return\)](#)

Vol. v. p. 92. The motto of the Onslow family, "Festina lente," is erroneously given as the serjeant's motto on his rings.

Footnote 3:[\(return\)](#)

Afterwards Lord Manners, Lord Chancellor of Ireland.

THE OLD COUNTESS OF DESMOND.

(Vol. v., pp. 145. 323.)

In your Number of "N. & Q." of April 3rd, there are some curious and interesting remarks by the KNIGHT OF KERRY, respecting that wonder for length of days, the old Countess of Desmond, in which he gives the copy of an inscription on an ancient painting, stating that in the year 1614, and in the 140th year of her age, she appeared at the court of King James, to seek relief in consequence of the House of Desmond having been ruined by attainder. That this statement in the inscription is erroneous, can, I think, be proved by the following circumstances, which also seem to me to afford some light on the most obscure parts of the question.

I have at this moment before me a work, which has been for many years in the library of my husband (the Rev. E. A. Bray, the Vicar of this place), and highly prized by us both, namely, a most perfect and beautiful copy of Sir Walter Raleigh's *History of the World*, published in 1614. I here give the date from the engraved title-page, which is of an allegorical description:

"THE HISTORY OF THE WORLD."
"AT LONDON: PRINTED FOR WALTER BVRRE."
"1614."

In this volume, Chapter V. (of "the first Booke of the first Part"), page 66., "Of the long Lives of the Patriarchs, and some of *late memory*," after enumerating several celebrated persons who lived to great ages, Raleigh thus speaks of the old Countess:—

"I myself knew the old Countess of Desmond of Inchiquin, in Munster, who lived in the yeare 1589, and many years since, who was married in Edward IV.'s time, and held her joynture from all the Earls of Desmond since then; and that this is true, all noblemen and gentlemen of Munster can witnesse."

From this passage I think it can be shown, that the reader can draw no other inference than that the Countess of Desmond was dead at the time Sir Walter Raleigh wrote it. In his heading to the chapter he speaks of some of "*late memory*;" and the words "*many years since*" evidently mean that she lived many years *after* 1589.^[4] We do not know at what precise period the above passage was penned; but we learn from Sir Walter's Preface, that he composed this great and admirable work whilst a prisoner in the Tower (from which he was liberated in 1616). In that preface he speaks with deep feeling and regret for the loss of Prince Henry. He says *the Prince read part of the work*; and that he wrote it "for the service of that inestimable" youth. We know that Henry died in November, 1612. The passage, therefore, about the "old Countess," which occurs in a very early part of the book, there can be no doubt, was written before 1612, and the entire work published in 1614. If, therefore (as I think no one can doubt, from the manner in which it is worded), the old lady was dead when Sir Walter wrote about her, it is not possible she could have visited the court of King James in 1614.

As Raleigh says "I myself knew the old Countess of Desmond," and plainly declares that she was married in the time of Edward IV., it is most probable that he received this account from herself at all events, when he so strongly appeals to the witness of "all the noblemen and gentlemen of Munster" for the truth of his statement, it is most unlikely he would have written thus merely on common or casual report. The KNIGHT OF KERRY says, "There are statements in existence of 1464 being the year of her birth." This is most probably the correct date, which is perfectly consistent with Raleigh's account of her marriage in the reign of Edward IV. It is likely she married very young. There is every probability that Raleigh was well acquainted with the "old Countess" when he was in Ireland, and acted so gallant a part against the rebels in that country. Early in the spring of 1581, upon the Earl of Ormond leaving Ireland, Captain Raleigh (for he was then only such), with Sir William Morgan and another gentleman, received a commission to

succeed the Earl for a time in his government in *Munster* (the old lady's county), and he spent the summer there of that year. It may be further remarked, that the then Earl of Desmond and *Sir John Desmond* are among the rebels, and that therefore the House of Desmond did suffer by attainder *in the reign of Elizabeth*;^[5] and more likely was it that the aged Countess should sue at the Court of Elizabeth for relief, than twenty years after at that of Jas. I.

If she came to England in 1589, Sir Walter Raleigh might have seen her in her pilgrimage to his royal mistress in that year, as in *that year* (the next after the defeat of the Spanish Armada, in which glorious service he bore a distinguished part), among other honours conferred upon him, was that of being appointed one of the gentlemen of her Majesty's Privy Chamber. In 1614 Raleigh was a prisoner in the Tower; and very improbable is it that, even had she been living at that date and in England, the old Countess would there have paid him a visit, to thank him for his mention of her in his *History of the World*. And, finally, had she really been alive when he wrote it, he might have referred to the lady herself, as a proof of what he said about her being true, instead of referring to "all the noblemen and gentlemen in Munster."

As the KNIGHT OF KERRY has expressed a wish to receive the opinions of your readers who take an interest in the subject, I venture to offer the foregoing remarks, in consequence of having the very valuable copy of Raleigh's great work in our possession, and shall be happy if the few observations I have made may be in any respect acceptable to him or to your readers.

ANNA ELIZA BRAY.

The Vicarage, Tavistock, Devon.

Footnote 4:[\(return\)](#)

In his *History of the World*, Raleigh frequently uses the word *since* as we use the word *after*.

Footnote 5:[\(return\)](#)

See Stow's *Annales of England*, p. 1217.

In a "Life of Old Parr," *Harl. Misc.*, vol. vii. p. 79., are the following lines about the old Countess, which may perhaps interest some of your readers:

"Sir Walter Raleigh, a most learned knight,
Doth of an Irish Countess (Desmond) write,
Of sevenscore years of age; he with her spake;
The Lord St. Albans doth more mention make,
That she was married in fourth Edward's reign;
Thrice shed her teeth, which three times came again."

At the bottom of the page is a note by Oldys, but it probably contains nothing new to your correspondents who have so diligently investigated this matter. He quotes however some remarks of Archbishop Usher on this subject, which I do not remember to have seen noticed in your pages.

ERICA.

The KNIGHT OF KERRY, in his very interesting letter, infers that if the old Countess of Desmond was only eight or nine years old at the death of Edward IV., she therefore could not have been married during the reign of that monarch. Was it not, however, a not uncommon custom, at that period, for royal and noble infants to be given in marriage at quite as early an age as eight or nine, whenever it suited the views, political or otherwise, of their parents or guardians?

C. E. D.

A FEW THINGS ABOUT RICHARD BAXTER.

(Vol. v., p. 481.)

Your correspondent MR. BEALBY mentions that in his visit to Kidderminster in 1836, he was shown the house in the High Street in which Richard Baxter is said to have resided: a few more particulars on the subject may prove interesting.

It was a three storied, high gabled house, with low ceilinged rooms, lighted by long ranges of casement. The exterior of the house displayed a goodly proportion of wood-work, and appeared to be much in its original condition.

No garden or extra-ground was attached to it, another street (Swan Street) running immediately at its back. Three or four years since the house fell before the march of modern improvements, and none of its old features can now be recognised. At the time of these alterations, the house was tenanted by a shoemaker. An ascent of four or five steps led into the shop, the long low window of which, projecting somewhat over the pavement, was tiled above, and supported underneath by wooden pillars. These also served to mark the boundary allotted to the display of the handiwork of the basketmaker who plied his trade in the capacious cellar underneath the shop.

Of course MR. BEALBY, while prosecuting in Kidderminster his inquiries about Baxter, visited Caldwell Castle (close to the town), once the residence of Sir Ralph Clare, Baxter's sturdy opponent. In an old map of the town, the castle is represented as having eight towers; but only one of these now remains, which is attached to a modern house. The tower is octagonal, built of red sandstone, of massive proportions, and is in good preservation. It contains two rooms lighted N. and S.; a turret staircase; and a groin-roofed cellar, level with the ground, and with an exterior door. From this cellar an underground passage is said to extend to St. Mary's Church, about a quarter of a mile distant. Sir Ralph Clare was buried in St. Mary's, opposite to where Baxter's pulpit then stood. The flat stone that covers his grave has once again been restored to the light by the removal of the cumbrous sleeping-box that concealed it,—thanks to the judicious alterations now being carried on by the present vicar; alterations very different to those "beautifyings" of 1786, in which Baxter's pulpit was sold as worthless lumber. (Vide "N. & Q.," Vol. v., p. 363.)

The Registers preserved in the vestry of St. Mary's attest the careful neatness of Baxter in his official entries. The headings of the different months are printed, and, in some cases, ornamented after the missal style. Many of the burials are set down as those of "valliant souldiers," who fell in the frequent skirmishes of those troublous times.

The row of elms on the south walk of the churchyard is said to have been planted in Baxter's time,—perhaps by his own hand.

If MR. BEALBY would like a copy of my etching of Baxter's pulpit (referred to at p. 363.), and would leave his address with the Publisher of "N. & Q.," I should be happy to forward one to him.

CUTHBERT BEDE, B.A.

ST. BOTULPH.

(Vol. v., pp. 396. 475.)

As no one has hitherto answered the inquiries of A. B. touching St. Botulph, I beg to forward you the following Notes. The earliest mention of him will be found in the *Saxon Chronicle*, at the year 654. He is said to have then commenced the building of a minster at *Ycean-ho*. The statement is repeated by Florence of Worcester, who writes the name of St. Botulph's convent *Ikanho*. Its locality is thus pointed out by Leland, *Itinerary*, i. 31, 32. ed. Hearne:—

"Some hold opinion that est of Lincoln were 2 suburbs, one toward S. Beges, a late [of late] a cell of S. Mari abbay at York; the which place I take be *Icanno*, wher was an house of monkes in S. Botolphes tyme, and of this speketh Bede[?]. It is scant half a mile from the minster."

The same writer has informed us (viii. 68.) that St. Botulph died in *Icanno* (15 Kal. Jun.), and that the monastery was soon afterwards destroyed by the Scandinavian vikings. The authority on which this latter statement will be found to rest is a "Life of St. Botulph," written or embellished by John Capgrave, and included in his *Nova Legenda Angliæ*. I have now before me a fine copy of the work (Lond. 1516); but very few of the events in which St. Botulph is there said to have played a part belong to the sphere of history. We learn that Botulphus and Adulphus were two noble brothers, who in early life were sent into "Old Saxony" to be instructed in monastic learning. Botulph there became acquainted with two sisters of an English king, named Ethelmund ("regis australium Anglorum"), who, at their wish, allotted to the monk a piece of barren ground, on which to build a convent ("locum quendam incultum et ab hominibus desertum Ykanho vocatum.") Like other marshy spots, in which the *ignis fatuus* abounded, it was thought

to be infested by malignant spirits. These were soon, however, put to flight ("edito crucis signo"), and a convent, on the model of the house in which St. Botulph had been reared, was planted in the midst of their domain. It perished under Edmund (941-946); but the relics of St. Botulph, which had been enshrined in his own foundation, were preserved, and afterwards translated, in the time of Edgar (959-975), through the efforts of St. Ethelwold. The head was sent to Ely, and the body equally apportioned to the royal cabinet of relics and the abbey church of Thorne. The closing passage is as follows:

"In libro ecclesie Sancti Botulphi juxta Aldersgate London habetur quæ pars corporis Sancti Botulphi per bone memorie regem Edwardum ecclesie B. Petri Westmonasterii est collata. Eodem etiam tempore, ut in quibusdam locis scriptum inveni, per eundem monachum, jubente episcopo Ethelwoldo, translata sunt apud Thornense monasterium ossa Benedicti Biscop, abbatis venerabilis Wermuthensis, nutritoris Bede presbiteri. Construxit autem Sanctus Ethelwoldus non longe a monasterio Thornensi, in loco ubi *beata virgo Christi Tona inclusa* fuerat, lapideam ecclesiolam delicatissimis cameratam cancellulis et duplici area tribus dedicatam altaribus permodicis, undique usque ad eius muros vallatam arboribus diversi generis. Sedem ibi heremiticam, si permisisset Deus, sibi delegit."

Is there any other notice of this female solitary?

C. H.

St. Catharine's Hall, Cambridge.

[Leland notices this female solitary. St. Tova, or Tona, was a Saxon saint, to whose memory a fair chapel, called Thoveham, or Thona, half a mile from the abbey, was consecrated; and at this place was the oratory of the Heremites. Lelandi *Collectanea*, vol. i. p. 28.; Willis' *Mitred Abbies*, vol. i. p. 187.—ED.]

The earliest mention found of this saint is in the *Saxon Chronicle*, under the year 654, when he began to build his minster at Ycean-ho, probably Boston or Botulph's-town in Lincolnshire. His life was first put into regular form by Fulcard, a monk of Thorney, who was made abbot of that monastery in 1068. Fulcard tells us in his preface what his materials were:

"Reperta sunt quædam in veteribus libris vitiose descripta, quædam ab ipso præcipuo præsuli in privilegiis ejusdem cœnobii sunt breviter annotata, cætera ex relatione veterum ut ab antiquioribus sunt eis exhibita."

An early MS. of this life is in the Harleian collection, No. 3097. It was printed (somewhat curtailed) by Capgrave in the *Legenda Nova*, and seems to have furnished all that our antiquaries know about St. Botulph. Camden indeed refers to *Bede*, iv. 3., as containing some mention of him; but I can find no such passage, and I believe that Botulph is nowhere mentioned in the *Historia Anglorum*. The remains of Botulph were taken up in the days of King Edgar, and his head was allotted to Ely, while the rest of his bones were divided between the abbeys of Thorney and Westminster. The cause of his extended popularity it is difficult to discover. His fame even passed over to Denmark, and an office is allotted to him in the Sleswick Breviary, *Britannia Sacra*, vol. i. p. 370. It has been surmised that he was a patron saint of seamen, and that his name indicates this character, *i. e.* boat-help! See Allen's *History of Lincoln*, vol. i. p. 245. His brother Adulf was made Bishop of Trajectum, probably Utrecht. Your correspondents may be referred to Capgrave; to Leland, *Collectanea*, vol. i. p. 217., and vol. iii. p. 33.; and to Ellis's *Monasticon*, vol. ii. p. 596., and vol. vi. p. 1621. St. Botulph's day is the 17th of June.

C. W. G.

SIR RICHARD POLE, THE FATHER OF CARDINAL POLE.

(Vol. v., pp. 105. 163.)

Without presuming to contravene the high authorities quoted by J. G. N. on the pedigree of Sir Richard Pole, the father of the celebrated Cardinal Pole, I am inclined to the belief that he descended from a common ancestor with the Cheshire family of "Poole," as suggested by your correspondent I. J. H. Wotton^[6] says, in his pedigree of "Poole, baronets of Poole" (from whom, by the way, the *Poles* of Shute collaterally derived):

"Robert Pull, *alias* Poole, *alias* De la Poole, lord of Barretspoole, 8 Edw. I., by Elizabeth, dau. to Hugh Raby, had issue *Reginald* and others. Reginald had issue James, who died 1 Edw. II., leaving Robert de Pull, his son and heir, who m., 2 Rich. II., the dau. and heir of Thomas de Capenhurst. Sir John de Pull, Knight, his son, lived 8 Hen. IV. and 3 Hen. V., and was father of Sir John *Poole*, of Poole, in Wirrall, living about 19 Rich. II., who by a dau. of — Mainwaring, of Peover, had issue, 1. Sir Thomas Poole, Knight, lord of Poole and Capenhurst, 35 Hen. VI. 2. Robert Poole, who left posterity. 3. *Sir Richard Poole, Knight*, who had progeny; and 4. James, grandfather to John Poole, of Stratford in Essex."

Is anything known further of the above Sir Richard Poole, Knight, or of his "progeny"? From a comparison of the dates before given with that of the time in which the father of the Cardinal flourished, it seems not improbable (in the absence of direct proof to the contrary) that he removed into Buckinghamshire, and was father of "Geoffry Pole," who married Edith St. John, as shown. Cardinal Pole, however, was born (in 1500) at Stoverton Castle in *Worcestershire*, and the fact that he was named Reginald, as borne by the son of Robert, the first ancestor of "Poole" (as shown in the above extract), as well as by other members of the baronet family, would tend to confirm the supposition of a common ancestry. The reasons for the change in the family bearing suggested by J. G. N. seem highly probable, besides being the usual course adopted by younger sons for difference. I would here suggest another Query: Was Sir Richard, or his son Henry, created Lord Montague? Burke seems to be at variance with other testimony I have found on the matter. He says:

"Sir Richard Pole, K.G., [was] summoned to Parliament in 1553 [Query, 1503], as Baron Montague: he m. Lady Margaret Plantagenet, dau. of Geo. Duke of Clarence, and left issue four sons and one daughter, viz. Henry, *second Baron* Montague (whose daughters and coheirs were, Katherine, wife of Francis, second Earl of Huntingdon; and Winifred, m. first to Sir Thomas Hastings, and, secondly, to Sir Thomas Barrington). 2. Geffery, Sir. 3. Arthur. 4. Reginald, the celebrated Cardinal. 5. Ursula, m. to Henry Lord Stafford."

In a list of attainders appended to the 2nd volume of Debrett's *Peerage*, the date 1504 is given as the creation, and 1538 the forfeiture of the title. Wotton says (vol. i. p. 32.):

"Sir Thomas Barrington, high sheriff of Essex and Hertford, 4 Eliz." 1561, "m. Winifred d. and coheir of Henry Pole, *Lord Mountague* (son of Sir Richard Pole, *Knight of the Garter*" only), "by Margaret Countess of Salisbury, dau. to Geo. Duke of Clarence, brother to King Edward VI."

That "marvellous" historian, Sir Richard Baker, in his *Chronicle* (ed. 1696, pp. 246. 271. 286., &c.), records, under the reign of Hen. VII. (cir. 1503):

"Prince Arthur, after his marriage, was sent again into Wales, to keep *that country in good order*, to whom were appointed for counsellors Sir Richard *Pool*, his *kinsman* and chief chamberlain, Sir Henry Vernon," &c.

I find no trace of the title till 15 Hen. VIII. (1524):

"All this while King Henry had play'd with the French, but now he seems to be in earnest, and therefore sends over the Duke of Suffolk with an army, the four and twentieth of August, attended with the Lord Montacute and his *brother*, Sir Arthur Pool, with many other knights and gentlemen."

On the knighthood of this *Sir Arthur* I find, farther on,—

"On *Allholland* (Query, All-hallows) day, in the chief church of Roy," (the Duke) "made knights, Lord Herbert (son of the Earl of Worcester), the Lord Powis, Oliver Manners, Arthur Pool, &c.

And now—

The 3rd Nov. (1538) Henry Courtney, Marquess of Exeter and Earl of Devonshire, *Henry Pool*, *Lord Montacute*, Sir Nicholas Carew, of Bedington, Knight of the Garter and Master of the Horse, and Sir Edward Nevill, brother to the Lord *Aburgenny*, were sent to the Tower,

being accused by Sir Geoffry *Pool*, the Lord Montacute's brother, of high treason. They were indicted for devising to promote and advance *one Reinald* (Qy. Reginald) *Pool* to the crown, and *put down* K. Henry. *This Pool was a near kinsman of the king's* (being the son of the Lady Margaret, Countess of Salisbury, daughter and heir to George, Duke of Clarence). He had been brought up by the king in learning, and made Dean of Exeter; but being *after sent* to learn experience by travel, he grew so great a friend of the Pope's that he became an enemy to King Henry, and *for his enmity to the king* was by Pope Julius III. made cardinal. For this man's cause the lords aforesaid being condemned were all executed; the Lord Marquess, the Lord Montacute, and Sir Edward Nevill, beheaded on the Tower Hill the ninth of January; Sir Nicholas Carew the third of March; two priests condemned with them were hanged at Tyburn: Sir Geoffry *Pool*, though condemned also, yet had his pardon."

I give this last quotation entire (hoping to be pardoned for its length), as it affords a curious insight into the eventful history of the period; for, two years later, I find it on record that—

"*Reynold Pool, Cardinal*, brother to the Lord Montacute, was with divers others attainted of high treason; of whom Foskeue and Dingley the tenth of July were beheaded, the Countess of Salisbury two years after."

But I forbear quoting further the account of this same cardinal's pompous "*absolution of these realms*," and "*reconciliation to the church of Rome*," all which are given in "marvellous" detail by our worthy historian. I pass on to observe, in conclusion, that, from the fact (as recorded in the first of the foregoing historic extracts) that "Sir Richard *Pool*, chamberlain" to Prince Arthur, was sent by him into *Wales*, I gather your correspondent I. J. H. H. has been led to suppose him a *Welsh knight*. That he is called a *kinsman* of the prince is also some confirmation of the statement afforded by J. G. N., that he became so by his mother's near connexion with the Countess of Richmond, but his own alliance with the house of Plantagenet must have taken place about the close of the fifteenth century (and I own this offers some objection to my theory of his descent); it could not have occurred in

1513, as your correspondent states, since Cardinal Pole was, as I have stated, born in 1500, and was therefore fifty-four years old at the commencement of Mary's reign, viz. 1553-4, when proposals were made for his marriage with the queen; for, says Sir Richard, once more, in speaking, of "the marriages propounded for Queen Mary:"

"One was Cardinal Pool, of a dignity not much inferior to kings, and by his mother descended from kings; *but there was an exception against him also, because four and fifty years old* (as old a batchelor as Queen Mary was a maid)," &c. &c.

May I be allowed to suggest another Query as to the value of the aforesaid dignity of knighthood, since Lord Herbert and Lord Powis accepted it with men of plainer name and "lesser note." I should feel obliged to any of your correspondents for information on this point.

H. W. S. T.

Southampton.

Footnote 6:[\(return\)](#)

English Baronets, vol. ii. p. 546. ed. 1727.

PROCLAMATIONS TO PROHIBIT THE USE OF COAL.

(Vol. v., p. 513.)

I have recently, for a definite purpose, searched for facts relative to the introduction of coal into domestic use, but I have not met with the case referred to by Dr. Bachhoffner. So harsh a measure appears somewhat inconsistent with other facts connected with the early history of coal. For instance, a grant, dated 7th May, in the 34th of Edward I. tolerates the introduction of sea-coal into London, but levies a toll of sixpence upon every ship-load passing London Bridge: "De qualibet navata carbonis maris venal. sex denarios" (Hearne's *Liber Niger Scaccarii*: Lond. 1774, 8vo. p. 480.), which toll was to be applied to the maintenance of the said bridge. A few months after this, in 1306, was issued the proclamation prohibiting its use; and on its being disregarded, was, as stated by Prynne, followed by a

Commission of Oyer and Terminer in the year 1307, a short time before the death of Edward I. It is pretty evident that on the accession of Edward II. a great change occurred in the opinion of the authorities respecting the use of coal; for in the year 1308 fifty pounds (equal probably to 800*l.* of our money) were paid from the Exchequer to provide wood and *coal* for the king's coronation. (*Issue Roll, Excheq.*, 1 Edw. II.) This sum was paid to John Fairhod, Thomas de Hales, Thomas Wastel, Roger le White, and John de Talworth. We cannot tell the quantity of coal used on that occasion; but, in addition to the above sum we find Richard del Hurst of London petitioning Parliament for the payment of ten shillings to him for sea-coal supplied at the king's coronation. (*Rot. Parl.*, 15 and 16 Edw. II., vol. i. p. 405.) Many facts might be given to show that coal was frequently used in London during the reign of Edward II.; and unless we are to infer that the king used without hesitation that which was denied to the citizens on pain of death, we cannot suppose that any such stringent measure was in force as to render the use of coal a capital offence. The period, therefore, in which the case referred to by Dr. Bachhoffner occurred, was most probably during the last few months of the reign of Edw. I. But I am not acquainted with any record of the case, and, with MR. WILSON, should feel obliged if any of your correspondents can refer me to it. But perhaps the Doctor himself will kindly answer the Query.

F. SOMNER MERRYWEATHER.

RALPH WINTERTON.

(Vol. v., pp. 346. 419.)

You mention that a Latin distich by Winterton may be found among the Additional MSS. in the British Museum. And at p. 420. his publication of *Hypocrates* is referred to, with a Query as to the Latin verse translation. As this book (not I believe very common) is now before me, I transcribe the title:

Ἱπποκράτους τοῦ Μεγαλοῦ οἱ ἀφορισμοὶ πεζικοὶ τε καὶ ἔμμετροι. Hippocratis Magni Aphorismi, soluti et metrici. Interprete Joanne Heurnio medico *Ultrajectino. Metaphrastis*, Joanne Frero

Medico-Poëta et Radulpho Winterton Medicinae, et Poëseως Græcæ studioso, *Anglis*.

Alexandri Magni Apophthegma.

Βασιλικόν εσι, τὸν εὖ ποιουντα κακῶς ἀκούειν.

Regale est, bene cū feceris, male audire.

Catabrigiæ. Excudebant Thomas Buck et Rogerus Daniel, MDCXXXIII."

The volume is 12mo., and dedicated to William [Laud?], Bishop of London. Then follow "Reverendorum S. Theol. Professorum Censuræ," including those of Thomas Comber, Dean of Carlisle, and Master of Trinity College, Cambridge; Matthew Wren, Dean of Windsor, and Master of Peterhouse, &c. The aphorisms are given each in the original Greek, with a metrical version in the same language, followed by prose and metrical versions in Latin.

At the end of my copy is bound up, as probably it was printed to accompany the preceding,

"Epigrammata Regiorum Medicinæ Professorum, Cantabrigiensis atque Oxoniensis, &c. In Rad. Wintertoni Metaphrasin nuper editam, &c., quibus accedunt Epigrammata Therapeutica ejusdem, ad malevolorum lectorum ægritudines."

Cantabrigiæ, same date and printers. One of the Epigrammata throws some light on the Query in Vol. v., p. 420., as to the authorship of the *Latin* version: Edward Hanburie, of Sidney College, says, addressing Winterton,
—

"Gratum opus hoc Medicis. Tu primus carmine *Græco* Metiris."

The volume closes with some Latin elegiac verses by Winterton on the death of his brother Francis, who, leaving the office of Gentleman of the Privy Chamber to the Queen,

"In Castra transiit. Is pro patria mortuus, Custrinæ,
in finibus Silesiæ, honorifice, et sicut militem decuit,
sepultus est."

This supplementary volume is partly occupied with complimentary verses
by the fellows of King's, who address Winterton as

"Medicum a suis juxta statuta designatum."

Among these is one copy by Gulielmus *Sclater*, C. R. C., "Socius Inceptor
in Artibus;" and another by Johannes *Sclater*, C. R. C., quondam Socius, S.
T. B. 1613. I indicate these as having lately called the attention of your
readers to this family.

BALLIOLENSIS.

Replies to Minor Queries.

Family of Bullen (Vol. v., p. 127.).—There is a physician of that name, who is, I believe, one of the professors in the Queen's College, Cork, and who may probably be able to afford your correspondent E. A. G. the information he wishes for. I have been informed that Dr. Bullen's father asserted that his family was descended from the Boleyn family.

J. E.

Wallington's Journal (Vol. v., p. 489.).—This volume is in my possession. It contains much curious and interesting matter.

J. GODWIN.

28. Upper Gower Street.

The Amber Witch (Vol. v., p. 510.).—In answer to a Query of A. N., this book is a pure fiction. Some German biblical critics pretending to decide that whole chapters, or whole books, of the Bible are spurious, from internal evidence, Meinhold wrote the *Amber Witch* to show how little able they were to judge of internal evidence in a much simpler case. Several of them fell into his trap, and then the author avowed the work to be his own.

T.

Twyford (Vol. v., p. 467.).—There is yet, I am informed, a *double ford* at Alnmouth, a little above the town. The ancient church, called Woden's Church, stood at the mouth of the Alne. Here was found the cross with the imperfect inscription in Anglo-Saxon runes, now preserved at Alnwick Castle. I am not aware that any local tradition now connects the name of Twyford with Alnmouth.

EDWARD CHARLTON.

The Ring Finger (Vol. v., p. 492.).—I have met with the following passage in Adam's *Antiquities* (8vo. ed., p. 429.), which seems to assign another origin to this custom than the one lately proposed in "N. & Q.":

"On this occasion" (*i. e.* the signing of the marriage contract) "there was commonly a feast: and the man gave the woman a ring (*annulus pronubus*) by way of pledge, *Juvenal*, vi. 27., which she put on her left hand, on the finger next the least; because it was believed a nerve reached from thence to the heart: *Macrob. Sat.* vii. 15."

ERYX.

Brass of Lady Gore (Vol. v., p. 412.).—This brass still exists, and commemorates Maria Gore, *Priorissa*, 1436, attired simply as a widow. Owing to its actual existence having been but recently known to collectors of rubbings, no mention was made of it in the *Oxford Manual*. For the same reason there is no notice of a very interesting brass of a bishop or abbot, date end of fourteenth century, at Adderley, Salop. The editor of the above work would take this opportunity of thanking MR. W. S. SIMPSON for his corrections ("N. & Q.," Vol. v., p. 369.). The rubbing, or rather smudging, from which the inscription was copied being nearly wholly illegible, accounts for the mistakes. Any further corrections will oblige

THE EDITOR OF THE "OXFORD MANUAL OF BRASSES."

Gloucester.

Gospel Trees.—Several Numbers of "N. & Q." have contained interesting notices of trees which are traditionally reported to indicate the standing-places of out-door preachers. To me, there is something very pleasing and picturesque—if nothing better—in these narrations; and I shall therefore be glad to find them recurring in your pages, whether their claims are of ancient or later date. Every reader of the vigorous poetry of Ebenezer Elliott, a true member of the *genus irritabile*, will recollect Miles Gordon "the Ranter" preacher, and how, in the poet's lines,—

"——The great unpaid! the prophet, lo!
Sublime he stands beneath the Gospel tree,
And Edmund stands on Shirecliffe at his side."

The context, too long to quote here, is a passage descriptive of the scenery in the vicinity of Sheffield in one direction, unsurpassed for graphic scope, freshness, and fidelity in the whole range of English rhyme. But the tree? Hundreds of summer visitors climb the hill, and ask *that* question; and they

are pointed to an ash, which stands in a situation conspicuous enough, but which neither the rest of "the trees of the wood," if they could speak, nor the quarryman, who remembers it when a sappling can allow to be *the* veritable "Gospel tree" of the poet, though, but for *this* memorandum in "N. & Q.," it might arrive at that distinction in the course of another century. A neighbouring tree, an oak, which those matter-of-fact judges, the trigonometrical surveyors, have marked with a lofty pole, competes with the aforesaid ash for the reverence of pilgrims but its claim is equally apocryphal. If, however, when on the spot, "it is difficult," according to the old adage, "to find the tree for the wood," as I experienced a few days since, it will ever stand conspicuous enough, in the poet's page, and may even serve to divert or recall attention to "Gospel trees," which have more than poetical claim to that appellation.

H.

"*Who from the dark and doubtful love to run*" (Vol. v., p. 512.).—I presume the lines imperfectly quoted by H. M. are to be found in the "Introduction" to the *Parish Register* by Crabbe, and which, as the book is before me, I will transcribe:

"Oh! rather give me commentators plain,
Who with no deep researches vex the brain,
Who from the dark and doubtful love to run,
And hold their glimmering tapers to the sun."

S. S. S.

Son of the Conqueror; Walker Tyrrel (Vol. v., p. 512.).—No other son of William the Conqueror, except William Rufus, was slain by an arrow in the New Forest. A grandson, however, of the Conqueror, Richard, son of Robert Duke of Normandy, met with the same fate as Rufus, as stated by the cotemporary chronicler, Florentius Wigornensis. (Edition of the Historical Society, vol. ii. p. 45.) Immediately after describing the death of William Rufus, he says:

"Nam et antea ejusdem Willelmi junioris germanus, Ricardus, in eadem foresta multo ante perierat, et paulo ante *suus fratruelis*, Ricardus, comitis scilicet Normannorum Rotberti filius, dum et ipse in venatu fuisset, a suo milite sagitta percussus, interiit."

Probably Sir N. Wraxhall or his authority had read this statement hastily, and had construed *fratrueis* brother instead of *nephew*, which is the correct sense of the word.

Your correspondent asks further for the authority for the death of William Rufus. Every historian of that day—Florentius Wigornensis and the Saxon chronicler among others—gives the received account of his death, except Suger, a Norman abbot, who says that Sir W. Tyrrel took a solemn oath to him that he was not the slayer of the king, but that the arrow came from an unknown hand.

There can, I think, be little doubt but that Sir W. Tyrrel's was the hand that drew the bow; whether, however, he intended to kill the king or not, is a point which it is probable, after the time that has elapsed, will never be satisfactorily determined.

R. C. C.

Oxon.

Sir Gilbert Gerrard (Vol. v., p. 511.).—I beg to refer MR. SPEDDING to Erdeswick's *Staffordshire*, by Harwood (1820), p. 83., who states that Sir Gilbert Gerrard died in 1592, and that he was buried in Ashley churchyard in that county, under a handsome monument. Probably the inscription on it will give the precise date, and some of your readers may be able to refer to it, and send the communication to "N. & Q." His death must have occurred between January 8, 1592, 34 Elizabeth, the date of his will as given in Dugdale's *Baronage*, vol. ii. p. 417., and the following April; if Dugdale is right in saying that it was then proved. But on referring to the *Baga de Secretis*, the contents of which are so excellently calendared by Sir Francis Palgrave in the Appendices to his third, fourth, and fifth reports as deputy-keeper of the Public Records, it appears that Sir Gilbert was named in a commission of Oyer and Terminer, on March 22; that he signed a precept under it for the return of the grand jury, on April 11; and that he signed another precept to the lieutenant of the Tower for bringing up Sir John Perrott before the justices, on *June 12*, all in 34 Elizabeth, 1592. (Fourth Report, Appendix II. pp. 282, 283.) It would seem, therefore, that Dugdale has erred in the date he assigns to the probate of Sir Gilbert's will. A search, however, at Doctors' Commons will solve the difficulty.

Edward Foss.

Fides Carbonarii (Vol. iv., pp. 233. 283.; Vol. v., p. 523.).—The Collier's Confession of Faith did not originate with Dr. Milner, but is at least three hundred years old. Cardinal Hosius commends it highly (*De auctor. sacræ Script.:* Opp. fol. 263.: Antverp. 1556), and so does Staphylus likewise (*Apologia*, fol. 83.: Colon. 1562). Bellarmin gives another version of the narrative, which he has taken from Petrus Barocius (*De arte bene moriendi*, lib. ii. cap. ix. pp. 200-203.: Antverp. 1620). Your correspondents should not have forgotten the concluding question and answer in what Crakenthorp has styled "The Colliar's Catechisme" (*Vigilius Dormitans*, p. 187.: Lond. 1631). The entire of the conversation may be represented thus:

"What do you believe?"

"I believe what the Church believes."

"And what does the Church believe?"

"The Church believes what I believe."

"And what do you both believe?"

"The same thing."

R. G.

Line on Franklin (Vol. iv., p. 443.; Vol. v., pp. 17. 549.).—

"Eripuit Jovi fulmen, sceptrumque tyrannis."

I do not exactly see the object of MR. WARDEN'S inquiry (if it indeed be one), as your correspondent R. D. H. had already traced it from Cardinal Polignac to Manilius; but, as perhaps MR. WARDEN means to inquire where *he* may have read it, I beg leave to inform him that line was first published as anonymous in the *Correspondence de Grimm et de Diderto*, April, 1778, and was lately reproduced in the *Quarterly Review* for June, 1850, with the addition that it was from the pen of *Turgot*, as the authority, I presume, of the *Life*, art. TURGOT, in the *Biographie Universelle*.

C.

Meaning of Royd as an Addition to Yorkshire Names (Vol. v., p. 489.).—The glossary to Hulton's *Coucher Book of Whalley Abbey* at once gives it thus:

"RODA, an assart, or clearing. Rode land is used in this sense in modern German, in which the verb roden means to clear. The combination of the syllable rod, *rode*, or *royd*, with some other term, or with the name of an original settler, has, no doubt, given to particular localities such designations as Huntroyd, Ormerod, &c., &c."

See also Lower *On Surnames* (3rd edit. i. 85.), and an elaborate note in Dr. Whitaker's *Whalley*, referred to in his account of Ormerod (3rd edit. p. 364.).

In the sense which Dr. W. gives to *Rode*, or *Royd*, as "a participial substantive of the provincial verb *rid*, to clear or grub up," that word will be found singly, or in combination, near forests and chases from the Lancashire Pendle to the Devonshire Dartmoor. It occurs also in Rodmore, Rodleys, &c., in the forest district of Gloucestershire over Severn; and Murray's *Handbook* may be referred to for Wernigerode, Elbingerode, &c., in the Hartz forest of Germany.

In Lancashire and Yorkshire the adjunct sometimes refers to the *early proprietor*, as in Monkroyd, Martinrode, &c.; sometimes to the *trees ridded*, as in Oakenrode, Acroyd, Hollinrode, Holroyd, &c.; sometimes to other characteristics. Instances of all kinds will be found in the *Whalley Coucher Book*, printed by the Chetham Society.

LANCASTRIENSIS.

Binnacle (Vol. v., p. 499.).—This word, which signifies the case or covering of the compass, was until the last thirty years spelled and pronounced "bittacle," and is derived, I should imagine, from the French word *habitacle*, a little habitation, a hut, a covering. It is almost the only one of our nautical terms which can be traced to a French origin.

C. K.

Plague Stones (Vol. v., p. 500.).—I have not observed that any of your correspondents have noticed the stones near the romantic village of Eyam, about four and a half miles E. N. E. of Tideswell in Derbyshire.

It is well known that this village suffered most severely from the plague; and the inhabitants still revere the memory of their pastor Mr. Nompesson, who nobly refused to desert his flock in the hour of danger, and fell a sacrifice to his devotion. I became acquainted with these stones some years ago, when on tour through Derbyshire, and, if I remember rightly, they are about two and a half feet high, one foot and a half in diameter, with a hollow place on the top like a dish, in which we were told the money of the "plague village" people was placed for the food, &c. that was brought to this boundary line by the people of the neighbourhood. The cavity in the stone was of course full of water.

J. G. C.

Ramasshed (Vol. iii., p. 347.).—The Fr. *ramas* (as also *ramon*) is "boughs formed into a *besom* or broom," Fr. *rameau*, from the Lat. *ramus*. To *ramass* or *ramash* is "to put or sweep together, as with a broom." Thus, Hackluyt, in his Preface to the Reader, speaks of volumes "most untruly and unprofitable *ramassed* or hurled to." To *ramassh* is also "to use a *ramas* or a construction of *ramasses*" (in the case of Syr R. Guyldford) as a vehicle for conveyance. The sleds first used for carrying travellers safely down steep hills were probably composed of bough-hurdles, afterwards transformed into barrows and other more convenient carriages.

Q.

Yankee Doodle (Vol. iv., pp. 344. 392.).—The citizens of the United States do not recognise this, but "Hail, Columbia," as their national air.

W. T. M.

Hong Kong.

"Chords that vibrate," &c. (Vol. v., p. 539.).—

"Chords that vibrate sweetest pleasure,
Thrill the deepest notes of woe."
"On Sensibility. To Mrs. Dunlop, of Dunlop."

Burns's *Poems*, ed. 1800, vol. iv. p. 404.

EDW. HAWKINS.

Derivation of Martinique (Vol. v., pp. 11. 165.).—MR. PHILIP S. KING's statement, that Martinique was discovered on St. Martin's day, is at variance with the account given by the historian of that island, who says that it was discovered on the 15th June, 1502, during Columbus's fourth voyage. The derivation of *Martinique* from *Martin* suggests itself so obviously, that, if the discovery had been made on the day (November 11) consecrated to that saint, it is not likely that the local historian would have gone out of his way to fix upon a Caribbean expression, *Martinina*, as the origin of the name.

HENRY H. BREEN.

St. Lucia.

Anthony Babington (Vol. v., p. 344.).—W. Kempe, the author of the *Dutiful Invective*, must not be confounded (as is frequently the case) with William Kempe the celebrated actor, and the reputed author of Kemp's *Nine Daies Wonder*. The first-named Kempe was probably a schoolmaster at Plymouth. See the Rev. A. Dyce's Introduction to his reprint of the *Nine Daies Wonder* (Camden Society, No. 11.).

The Censure of a Loyall Subject, which your correspondent (following Herbert) attributes to Kempe, is well known to have been the production of George Whetstone, whose initials are at the end of the Dedication. A copy may be seen in the Library of Lambeth Palace.

The execution of the "fourteen most wicked traitors" (Ballard, Babbington, Tichbourne, &c.) formed the subject of many ballads and tracts, a few of which I am enabled to enumerate:

1. A Proper New Ballad to the Tune of 'Weep, Weep,' by Thomas Deloney, beginning:

"Rejoice in hart, good people all,
Sing praise to God on hye,
Which hath preserved us by his power,
From traitors tyranny."

Reprinted in Mr. Collier's Old Ballads (Percy Society, No. 1.).

2. "A Ballad of Rejoycinge for the Revealinge of the Quenes Enemyes. Licensed to Edward Alde, August 24, 1586-7."

3. "A Joyfull Songe made by a Citizen of London in the Behalfe of all her Majesties Subjects, touching the Joye for the taking of the Traitors. Licensed to R. Jones, August 27, 1586-7."

4. "A Short Discourse, expressing the Substance of all the late intended Treasons against the Queenes Majestie and Estates of this Realme by Sundrie Traytors, &c. Printed by G. Robinson for Edward White."

This tract contains an interesting ballad by T. Nelson, whom Mr. Collier calls "the ballad-writing bookseller." See *Extracts from the Stationers' Registers*, vol. ii. p. 214. A copy is preserved in the library of Lambeth Palace.

EDWARD F. RIMBAULT.

Seventh Son (Vol. iii. pp. 148. 149.; Vol. v., p. 412.).—Through the information of a friend I am able to add a curious "modern instance" to my communication printed in the Number of "N. & Q." for May 1. In Saltash Street, Plymouth, my friend copied, on the 10th Dec. 1851, the following inscription on a board, indicating the profession and claims of the inhabitant:—

"A. SHEPHERD,

THE THIRD SEVENTH DAUGHTER,

DOCTRESS."

H. G. T.

Weston-super-Mare.

"*Venit ad Euphratem*" (Vol. v., p. 512.).—The epigram referred to by your correspondent H. M. runs thus:

"*Venit ad Euphratem; rapidis perterritus undis,*

Ut cito transivit, corripuit medium."

S. Q.

Sneezing (Vol. v., pp. 364. 500.).—I have often seen, but where I cannot now recollect, that the custom of saying "God bless you!" when any one sneezed, arose from the fact that in the great plague of Athens sneezing was an unfailing proof of returning convalescence. Your classical readers will remember the anecdote told in the *Anabasis* of Xenophon (c. ii. sect. i.-v.). I copy from Mitford, who has besides a note to the purpose:

"At daybreak the troops were assembled, and Chirosofophus, Cleanor, and Xenophon successively addressed them. An accident, in itself even ridiculous, assisted not a little, through the importance attributed to it by Grecian superstition, to infuse encouragement. Xenophon was speaking of that favour from the gods which a righteous cause entitled them to hope for against a perjured enemy, when somebody *sneezed*. Immediately the general voice addressed ejaculations to protecting Jupiter, whose omen it was supposed to be. A sacrifice to the god was then proposed; a universal shout declared approbation; and the whole army, in one chorus, sang the Pæan."—*History of Greece*, vol. v. p. 185. cap. xxiii. sect. iv.: Lond. 1835, 8vo.

We must not, however, forget that when Elisha restored the Shunamite's son to life—

"The child *sneezed* seven times, and the child opened his eyes."—2 *Kings*, iv. 35.

R.T.

Rents of Assize (Vol. v., p. 188.).—Has not J. G. misquoted? Is not the line

"Regis ad exemplar, totus componitur orbis."

J. E.

Rochester.

Fire unknown (Vol. iv., pp. 209. 283. 331.).—In *An Account of the Native Africans of Sierra Leone*, by T. M. Winterbottom: Lond. 1803, 2 vols., occurs the following note to vol. i. p. 75.:—

"It is said that the inhabitants of the Marian or Ladrone islands were ignorant of the use of fire before they were visited by the Spaniards; but even then they were acquainted with the mode of producing intoxication by means of the wine of the cocoa-nut tree."

ZEUS.

Newtonian System (Vol. v., p. 490.).—The author of the pamphlet entitled *The Theology and Philosophy of Cicero's Somnium Scipionis explained*, London, 1751, 8vo., was Bishop Horne. He wrote it before he had attained majority, and many attacks were made upon it. It is not included in the edition of his collected works in 6 vols. 8vo. 1809. Bishop Warburton, who cordially disliked the Hutchinsonians, or, as he styled them, the English Cocceians, mentions this tract in his *Letters to Bishop Hurd*:

"There is one book, and that no large one, which I would recommend to your perusal; it is called *The Theology and Philosophy of Cicero's Somn. Scip. examined*. It is indeed the ne plus ultra of Hutchinsonianism. In this twelve-penny pamphlet Newton is proved an atheist and a blockhead. And what would you more?"—Warburton's *Letters to Hurd*, edit. 1808, 4to. p. 63.

The anecdote as to Newton, Locke, and Lord Pembroke, p. 27., was first told by Whiston, whose character for accuracy does not stand high, particularly when Sir I. Newton, against whom he bore a grudge, is concerned.

JAS. CROSSLEY.

Newton, Cicero, and Gravitation (Vol. v., p. 344.).—Newton is celebrated for having proved that all bodies attract one another with a force varying

inversely as the square of the distance. What resemblance has this to a statement, that all bodies gravitate to the centre of the world, or, as explained by Cicero, the earth? which at most only implies its rotundity. Perhaps S. E. B. was joking, like Hegel, when he said that Newton called $5/A^2$ gravitation, and inferred that gravitation varied as $1/A^2$. Otherwise modern philosophers, as *e.g.* Kepler, would have supplied much nearer approximations to Newton's law.

ALTRON.

Rhymes on the Names of Places (Vol. v., p. 404.).—I remember hearing the following verse in the neighbourhood of Nottingham:

"Eaton and Taton, and Bramcote o' th' hill,
Beggarly Beeston, and lousy Chilwell;
Waterside Wilford, hey little Lenton!
Ho fine Nottingham! Colwick and Snenton."

The villages whose names occur are all within a few miles of Nottingham.

The following rhyme I have also heard:

"Derbyshire born and Derbyshire bred,
Strong i' th' arm and weak i' the head."

R. C. C.

Oxon.

Saint Wilfrid's Needle (Vol. v., p. 510.), where, according to Burton, "they used to try maids whether they were honest," is not, as B. B. supposes, a stone, but a narrow passage in the crypt beneath the central tower of Ripon Minster. This crypt is of Saxon workmanship, and is probably either a part of the original church built by Saint Wilfrid, or "the new work," which, according to Leland—

"Odo, Archebishop of Cantewarbyri ... causid to be edified, wher the Minstre now is."

This passage is said to have been used as a place of ordeal through which maidens of suspected honesty were caused to pass,—a feat which none but

a virgin could accomplish.

K. P. D. E.

"*Measure for Measure*," Act I. Sc. 1. (Vol. v., p. 535.).—I should be sorry to cast a cloud over the *satisfactory* elucidation which A. E. B. flatters himself he has made of a passage in *Measure for Measure*, for, if not convincing, it is unquestionably ingenious. I am afraid, however, there is one fatal objection, of which, when pointed out, I doubt not your correspondent will see the force. He says, "the demonstrative pronoun *that*, refers to *the commission* which the Duke holds in his hand;" but is this the language we in England use? Until the Duke presented the commission,—the act indicated by the words "there is our commission,"—there cannot indeed be much doubt that he held it in his hand; and while he did so, he would as certainly have said *this*, as I speak of *this* pen with which I write.

Your correspondent challenges comment in assuming that his explanation was satisfactory enough to preclude all correction. At the same time I must confess I am altogether sceptical with regard to Mr. Halliwell's *verb*. As, however, he has excited our curiosity, he will doubtless not object to satisfy it. MR. SINGER'S suggestion seems to me worthy of consideration; but, after all, I feel that there is a degree of incoherency in the passage, and so unsatisfactory a connexion between the words "and let them work" and that which precedes, that I cannot help recurring to the idea that a line has been lost,—an accident of not very uncommon occurrence.

SAMUEL HICKSON.

St. John's Wood.

"*Stunt with false care*," &c. (Vol. v., p. 538.).—The lines alluded to, though the first of them is incorrectly quoted, are from George Cox's brilliant satire, *Black Gowns and Red Coats; or, Oxford in 1834*, respecting which some information was recently furnished by your correspondents S. F. C. (Vol. v., p. 297.) and C. W. B. (Vol. v., p. 332.) in reply. The work is perhaps sufficiently scarce to warrant the citation of the whole passage, which occurs at the commencement of Part V.:

"When Philip's son, in all a monarch's pride,
With tempting boons approach'd the barrel's side,

Full in the sun his glitt'ring trains display'd,
And sought to cumber with officious aid,
The Cynic sneer'd, and only begg'd in spite
The free enjoyment of the beams of light.
Such were the humble prayer, the meek request
That Oxford's sons might ask their tyrants best;
The full out-pouring on their blinded youth
Of Nature's sunbeams, and the light of truth,
Rest from the burking systems of the sect,
Who kill with care more fatal than neglect,
Who twist with force unnatural aside
The straight young branches in their heaven-ward pride,
With culture spoil what else would flourish wild,
And rock the cradle till they bruise the child."

The poem in question, which is equal in talent to anything that has appeared since the days of Pope, was published by Ridgway in 1834, but is now rarely to be met with, though I never heard of its being suppressed.

G. T. D.

The Lines on Chaucer (Vol. v., p. 536.).—The lines about which ELIZA inquires are not quoted by her quite correctly. They are by Mr. W. J. Fox, and may be found in the little volume entitled *Hymns and Anthems* (published by Chas. Fox, 1845), used at the Unitarian Chapel in South Place, Finsbury. No. CXXIII. begins thus:

"Britain's first poet,
Famous old Chaucer,
Swan-like in dying,
Sang his last song,
When at his heart-strings
Death's hand was strong," &c.

JAYDEE.

Will O' the Wisp (Vol. v., p. 511.).—Will O' the Wisp still lives by the banks of Trent; but alas! his reign is almost over. Fifty years ago he might be seen nightly dancing over bog and brake; but since the process of warping has been discovered, which has made valuable property of what was before a

morass, nearly the whole of the commons between Gainsborough and the Humber have been brought into cultivation, and the drainage consequent thereon has nearly banished poor Will.

Any person wishing to make his acquaintance would probably succeed, if he were to pass a night next November on Brumby or Scotton common.

K. P. D. E.

Miscellaneous.

NOTES ON BOOKS, ETC.

A late eminent scholar was in the habit of advising his friends, when in doubt which of two books to buy: "If one of them is a Dictionary, always buy the Dictionary:"—and the noble library which he bequeathed to the public shows that he himself always acted upon this principle. What he said of Dictionaries generally, will apply with particular force to the very admirable *Dictionary of Science, Literature, and Art; comprising the History, Description, and Scientific Principles of every Branch of Human Knowledge, with the Derivation and Definition of all the Terms in General Use*, edited by Professor Brande and Dr. Cauvin, with the assistance of many eminent literary and scientific gentlemen, of which the second edition is now before us. Our impression on opening it was, that NOTES & QUERIES would find its occupation gone: and, although it is obvious that such cannot be the case, we feel sure that if all Querists upon ordinary subjects would turn to this excellent compendium of general information before transmitting to us many such inquiries as we now receive, they would at once be put in possession of the information of which they are in search; and we should be spared a very considerable amount of labour. The object which the proprietors proposed to themselves in the one closely printed volume of which the book consists, has been to supply the place of those large Encyclopædias and Dictionaries of modern times which are either too voluminous or too special for ready reference and general use; and to produce, in a form which should admit of its being carried about, a work which, without entering into long details of theories, &c., should exhibit an *abstract of the principles of every branch of knowledge, and a definition and explanation of the various terms in Science, Literature, and Art*, which occur in reading or conversation, with that facility of reference and precision of statement which ought to be the distinguishing features of a useful Dictionary. Thanks to the knowledge and good judgment of the editors and their assistants, this object has been so successfully accomplished, that Brande's *Dictionary of Science, Literature, and Art*, may

be pronounced as at once a valuable substitute for a small library, and an indispensable accompaniment and key to a large one.

The new volume (the sixth), which has just been issued, of Messrs. Rivington's handsome edition of *The Works and Correspondence of the Right Honourable Edmund Burke*, is one of peculiar interest, inasmuch as in addition to his Tracts on the Laws against Popery in Ireland, and his Reports of the House of Commons on the affairs of the East India Company, and the Charges against Warren Hastings, it contains his Hints for an Essay on the Drama, and the Essay towards an Abridgment of the English History in Three Books.

BOOKS AND ODD VOLUMES

WANTED TO PURCHASE.

A NARRATIVE OF THE PROCEEDINGS IN THE DOUGLAS CAUSE. London, Griffin, 8vo. 1767.

CLARE'S POEMS. Fcap. 8vo. Last edition.

POETIC WREATH. 8vo. Newman.

MALLET'S ELVIRA.

MAGNA CHARTA; a Sermon at the Funeral of Lady Farewell, by George Newton. London, 1661.

BOOTHBY'S SORROWS SACRED TO THE MEMORY OF PENELOPE. Cadell and Davies. 1796.

CHAUCEER'S POEMS. Vol. I. Aldine Edition.

BIBLIA SACRA, Vulg. Edit., cum Commentar. Menochii. Alost and Ghent, 1826. Vol I.

BARANTE, DUCS DE BOURGOGNE. Vols. I. and II. 1st, 2nd, or 3rd Edit. Paris. Ladvocat. 1825.

BIOGRAPHIA AMERICANA, by a Gentleman of Philadelphia.

POTGIESERI DE CONDITIONE SERVORUM APUD GERMANOS. 8vo. Col. Agrip.

THE BRITISH POETS. Whittingham's edition in 100 Vols., with plates.

REPOSITORY OF PATENTS AND INVENTIONS. Vol. XLV. 2nd Series. 1824.

————— Vol. V. 3rd Series. 1827.

NICHOLSON'S PHILOSOPHICAL JOURNAL. Vols. XIV. XV. 1806.

JOURNAL OF THE ROYAL INSTITUTION OF GREAT BRITAIN. No. XI. 2nd Series.

WORKS OF ISAAC BARROW, D.D., late Master of Trinity College, Cambridge. London, 1683. Vol. I. Folio.

LINGARD'S HISTORY OF ENGLAND. Vols. VI. VII. VIII. IX. XII. XIII., cloth.

FABRICII BIBLIOTHECA LATINA. Ed. Ernesti. Leipsig, 1773. Vol. III.

THE ANACALYPSIS. By Godfrey Higgins. 2 Vols. 4to.

CODEx DIPLOMATICUS ÆVI SAXONICI, opera J. M. Kemble. Vols. I. and II. 8vo.

ECKHEL, DOCTRINA NUMORUM. Vol. VIII.

BROUGHAM'S MEN OF LETTERS. 2nd Series, royal 8vo., boards. Original edition.

KNIGHT'S PICTORIAL SHAKSPEARE. Royal 8vo. Parts XLII. XLIII. XLIV. L. and LI.

CONDER'S ANALYTICAL VIEW OF ALL RELIGIONS. 8vo.

HALLIWELL ON THE DIALECTS OF SOMERSETSHIRE.

SCLOPETARIA, OR REMARKS ON RIFLES, &c.

THE COMEDIES OF SHADWELL may be had on application to the Publisher of "N. & Q."

* * Letters, stating particulars and lowest price, *carriage free*, to be sent to MR. BELL, Publisher of "NOTES AND QUERIES," 186. Fleet Street.

Notices to Correspondents.

REPLIES RECEIVED.—*The Amber Witch—The Moon and her Influences—Gilbert de Clare—Edmund Bohun—Mr. Miller of Craigentenny—Passage in "Measure for Measure"—Fides Carbonarii—Oasis—Lord Bacon a Poet—Burials in Woollen—Gabriel Hounds—Ben Jonson's adopted Sons—Market Crosses—Large Families—The Death Watch—Baxter's Shove—Tortoise-shell Tom Cats—Tregonwell Frampton—John Roger the Protomartyr—Epigram on the Euphrates—Titles of the Queen of England—Gospel of the Distaffs—The Number Seven—After me the Deluge—Restiff—Seven Senses—Mummy Wheat—Lines on Woman—St. Wilfrid's Needle—Will o' the Wisp—Cross Neytz—Surnames—Curse of Scotland—Lines on Crawford of Kilbirnie—The Empress Josephine—Stunt with false Care—Lines on Burning of the Houses of Parliament—Hoax on Sir Walter Scott—Amyciæ—Reason and Understanding—Shakspeare's Seal—St. Patrick—Mistletoe—Nacar—The Oak and the Ash—Toady or Toadeater—Sun Dial Motto—Frebord—Rhymes on Places—Addison and Maxwell—King Arthur—Rabbit as a Symbol—St. Christopher and the Doree—Smyth's MSS.—Term Milesian—Spanish Vessels wrecked on Coast of Ireland.*

We are this week obliged by want of space to omit many interesting Articles, Notes, and Replies to Correspondents.

W. K. (Leicester) is thanked for his very kind offer, which we gladly accept.

C. B. A. shall receive early attention.

Neat Cases for holding the Numbers of "N. & Q." until the completion of each Volume are now ready, price 1s. 6d., and may be had by order of all booksellers and newsmen.

"NOTES AND QUERIES" is published at noon on Friday, so that the Country booksellers may receive Copies in that night's parcels and deliver them to their Subscribers on the Saturday.

MOURNING.—COURT, FAMILY, and COMPLIMENTARY.—The Proprietor of THE LONDON GENERAL MOURNING WAREHOUSE begs respectfully to remind families whose bereavements compel them to adopt Mourning Attire, that every article of the very best description, requisite for a complete outfit of Mourning, may be had at this Establishment at a moment's notice.

ESTIMATES FOR SERVANTS' MOURNING, affording a great saving to families, are furnished; whilst the habitual attendance of experienced assistants (including dressmakers and milliners), enables them to suggest or supply every necessary for the occasion, and suited to any grade or condition of the community. WIDOWS' AND FAMILY MOURNING is always kept made up, and a note, description of the Mourning required, will insure its being sent forthwith, either in Town or into the Country, and on the most Reasonable Terms.

W. C. JAY, 247-249. Regent Street.

CIGARS OF THE CHOICEST IMPORTATIONS at GREATLY REDUCED PRICES for CASH. The First Class Brands. "Ptarga," "Flor Cabana," &c., 28s. per pound. British Cigars from 8s. 6d. per pound. Lord Byron's, 14s. 6d., very fine flavour. Genuine Latakia, 10s. 6d. per pound, delicious aroma. Every Description of Eastern and American Tobaccos. Meerschaum Pipes, Cigar Cases, Stems, Porte Monnaies, &c. &c. of the finest qualities, considerably under the Trade Prices.

J. F. VARLEY & CO., Importers.

The HAVANNAH STORES, 364. Oxford Street, opposite the Princess's Theatre.

4to., half-bound in morocco, with Portrait, 30s.

MEMOIRS OF MUSICK. By the Hon. ROGER NORTH, Attorney-General to James I. Now first printed from the Original MS., and edited, with Copious Notes by EDWARD F. RIMBAULT, LL.D., F.S.A., &c. &c.

Abounds with interesting Musical Anecdotes; the Greek Fables respecting the Origin of Music; the Rise and Progress of Musical Instruments; the early Musical Drama; the Origin of our present Fashionable Concerts; the First Performance of the Beggar's Opera, &c.

* * The few remaining Copies are raised in price to 30s.

GEORGE BELL, 186. Fleet Street.

In Seven Volumes 8vo., price 31s. 6d. cloth, The "Former Series," comprising Parts I. to XIV. inclusive, of

THE JOURNAL OF SACRED LITERATURE. Edited by JOHN KITTO, D.D., F.S.A.

The following are some of the Contents:—

Vol. I.—*Ecclesiastical History*—Aquinas, Chrysostom. *Biography*—Mohammed, Milton. *Biblical Criticism*—Azazel, Death, Anthropomorphism, Poetry, Rationalism, Free Inquiry in Theology, Hebrew Meats, Metres, Resurrection of the Saints, Sacred Trees. *Interpretation*—Amos, Ezekiel, Job, Ecclesiastes, Proverbs, Song of Songs.

Vol. II.—*Biography*—Matthew Henry, Francis Quarles. *Biblical Criticism*—The Burning of the World, Christianity in Germany, Old Testament Citations, the Youth of David, Elohim, Metals, the East, the Christian Sabbath, the Septuagint, Misapplication of Scripture.

Interpretation—Genesis xiv., the First Periods of Genesis, the Gospel of St. John.

Vol. III.—*Biography*—Calvin, Pascal, Wesley, Ulphilas. *Biblical Criticism*—Alleged Discrepancy between Paul and James, the Days of Creation. Customs Illustrative of the Bible, the Logos, Fine Art among the Jews, Mustard Tree of Scripture, the formula—"That it might be fulfilled." *Interpretation*—Colossians, Mathew and Luke's Genealogies, Miracle of Joshua.

Vol. IV.—Eustathius. *Biblical Criticism*—Christianity, Chronology of the Kings of Israel, Demoniacal Possession, Hyssop, Is Biblical Criticism unfavourable to Piety? Genius of Christianity, Tense of the Hebrew Verb, Tischendorf's Greek Testament. *Biblical Interpretation*—Isaiah, Genesis iv. 7, Joshua, St. Luke.

Vol. V.—*Ecclesiastical History*—Josephus, Justin Martyr, Theobald Thamar. *Biblical Criticism*—Baptism for the Dead, Bedouin, Romance Antar, The Creation, Peter's Residence at Rome, the Separate State.

Vol. VI.—*Biblical Criticism*—Apocalyptic Literature, Chronological Harmony of the Gospels, Evidence of the Resurrection, Genesis and Geology, Letter and Spirit of the Old Testament, Literal Interpretation of Prophecy, Poetical Legends of the Talmud, Scriptural Parallelisms, Providence of God.

Vol. VII.—*Biography*—Calvin, the Jansenists. *Biblical Criticism*—Bards of the Bible, Egypt, Exploration of the Jordan, Inspiration, Nineveh, Our Lord's Discourses, the Septuagint, Human Progression. *Interpretation*—Acts, Words which Paul heard in Paradise, Demoniac Possessions in the New Testament, 1 Cor. vii. 25, Parallelistic Poetry.

Also Nos. I., II., and III., NEW SERIES, price 5s. each.

CONTENTS OF APRIL NO. (NO. III.)

1. Romanism as it is.
2. Gregory of Nazianzum.

3. The Rephaim.
 4. Alford's Greek Testament.
 5. On the Nature of a Miracle.
 6. Recent Travels in Palestine.
 7. The Epistle to Diognetus.
 8. Israel after the Flesh.
 9. Remarks on 1 Chron. vi. 16-38.
 10. Remarks on Rev. xxii. 8, 9.
- Correspondence, Notices, &c. &c.

ROBERT B. BLACKADER, Aldine Chambers, 13. Paternoster Row,
London.

Just published, in Imperial 4to., cloth gilt, 25s.

SCHOOLS AND SCHOOL-HOUSES FOR RURAL PARISHES, in a series of 27 Plates, comprising Perspective Views, Plans and Details, with full description thereof. By JOSEPH CLARKE, architect to the Diocesan Boards of Education of Canterbury, Rochester, and Oxford.

The twelve schools and school-houses recently erected by the author, which form the contents of the work, have been selected to show the arrangement of large and small structures suitable to the requirement of rural villages.

G. BELL, Fleet Street, London; JOSEPH MASTERS, New Bond Street;
and J. H. PARKER, Oxford.

INTERESTING GLEANINGS RELATIVE TO THE FOLLOWING ENGLISH COUNTIES may be had of MR. JAMES FENNELL, 1. WARWICK COURT, HOLBORN, LONDON, immediately upon the receipt of a remittance for the prices here stated, viz.: LANCASHIRE, interesting Cuttings from Old Periodicals (1730 to 1835), several Views (some scarce), Moule's Topography of the County, Speed's Large Map, with curious Bird's-eye View of Lancaster (1650), several old Manchester Play-bills, Broadside, and scarce Tract, Herman's rare and curious View of Lancaster, published at Amsterdam (1661), and other items, 1l. 10s.

LEICESTERSHIRE Cuttings (1726 to 1850), Speed's curious Map with View of Leicester (1650), Herman's rare View of Leicester (Amst. 1661), Kip's large View of Syston (1728), old Leicester Play-bills, several Views of Castles, Churches, Mansions. Portraits (some scarce), Tracts, &c., 1*l.* 5*s.* LINCOLNSHIRE Cuttings (1731 to 1838), Moule's Topography (1830), Woodward's Eccentric Excursion, with singular Plates (1796), Speed's Map and Bird's-eye View of Lincoln (1650), several Views of Antiquities (some rare), Three curious and scarce Tracts, &c., 1*l.* 5*s.* MONMOUTHSHIRE, Moule's Topography (1830), Woodward's Eccentric Excursion (1796), some Views and Cuttings 7*s.* 6*d.* NORFOLK, Moule's Topography (1830), Speed's Map with Bird's-eye View of Norwich (1650), Herman's rare Plan of Norwich (Amst. 1661), several scarce Views and Portraits, various Cuttings (1730 to 1810), old Norwich and Lynn Play-bills, curious old Almanac for King's Lynn (1751), England saved, by W. Bridge, a Yarmouth Preacher, 4*to.* (1648), &c. &c., 1*l.* 10*s.* NORTHAMPTONSHIRE Cuttings (1724 to 1807), Speed's Description and Map, with Bird's-eye Views of Northampton and Peterborough (1650), Moule's Topography (1830), Woodward's Eccentric Excursion (1796), several Portraits and Views (some scarce), Life of Woolston of Northampton (1733), Clark's Earthquake Sermon at Daventry (1756), W. Agutter's Faithful Soldier, preached at Northampton (1798), Edwards's Sermon on the Rev. John Horsey, at Northampton (1827), &c., &c., 1*l.* 1*s.*

Collections relative to other Counties may be had also.

Just published, in small 4*to.*, very neat,

THE TEACHER'S PRAYER ON THE CONFIRMATION OF HER PUPILS. Forwarded to any Part of the Kingdom on receipt of Six Postage Stamps.

JAMES FENNELL, 1. Warwick Court, Holborn.

NEW EDITION, CORRECTED TO 1852.

Just published, in 1 vol. 8vo. with woodcuts, price 3*l.* cloth; or 3*l.* 5*s.* half-bound in Russia, with flexible back.

BRANDE'S DICTIONARY of SCIENCE, LITERATURE, and ART: Comprising the History, Description, and Scientific Principles of every Branch of Human Knowledge: with the Derivation and Definition of all the Terms in general use. Second Edition, corrected; with a Supplement, containing numerous Additions, together with the chief Scientific Terms, Processes, and Improvements that have come into general use since the Publication of the First Edition.

* * The supplement may be had separately, price 3*s.* 6*d.*

London: LONGMAN, BROWN, GREEN and LONGMANS.

BOOKSELLERS who circulate CATALOGUES of New and Second-hand Theological Books would find it to their advantage to have them stitched up with the JOURNAL of SACRED LITERATURE, edited by Dr. Kitto. It is read nearly universally by Biblical Scholars.

* * Catalogues for the July Number (No. 4, New Series) will be received till the 26th.

ROBERT B. BLACKADER, 13. Paternoster Row.

THE COMPANION TO THE ALMANAC, or YEAR BOOK OF GENERAL INFORMATION. A very few perfect sets of this valuable work remain on hand, and may be had in 12 vols. of two years each, from 1828 to 1851 inclusive, price 3*l.* The Companion of 1852, price 2*s.* 6*d.*, will, with 1853, form the 13th vol.

"The unparalleled course of Public Improvements is here recorded year by year in separate articles or Statistical Tables; and the series forms a complete chronicle of the proceedings of both Houses of Parliament, from the year 1828 to the present time."

The vols. may be had separately, price 6s.

C. KNIGHT, Fleet Street.

THE QUARTERLY REVIEW, No. CLXXXI. ADVERTISEMENTS for the forthcoming Number must be forwarded to the Publisher by the 24th, and Bills for insertion by the 26th instant.

JOHN MURRAY, Albemarle Street.

WESTERN LIFE ASSURANCE AND ANNUITY SOCIETY,

3. PARLIAMENT STREET, LONDON.

Founded A.D. 1842.

Directors.

H. Edgeworth Bicknell, Esq.
William Cabell, Esq.
T. Somers Cocks, Jun. Esq. M.P.
G. Henry Drew, Esq.
William Evans, Esq.
William Freeman, Esq.
F. Fuller, Esq.
J. Henry Goodhart, Esq.
T. Grissell, Esq.
James Hunt, Esq.
J. Arscott Lethbridge, Esq.
E. Lucas, Esq.
James Lys Seager, Esq.
J. Basley White, Esq.
Joseph Carter Wood, Esq.

Trustees.

W. Whateley, Esq., Q.C.;

L. C. Humfrey, Esq., Q.C.;
George Drew, Esq.

Consulting Counsel.—Sir Wm. P. Wood, M.P.

Physician.—William Rich. Basham, M.D.

Bankers.—Messrs. Cocks, Biddulph, and Co., Charing Cross.

VALUABLE PRIVILEGE.

POLICIES effected in this Office do not become void through temporary difficulty in paying a Premium, as permission is given upon application to suspend the payment at interest, according to the conditions detailed on the Prospectus.

Specimens of Rates of Premium for Assuring 100*l.*, with a Share in three-fourths of the Profits:—

Age	£	s.	d.	Age	£	s.	d.
17	1	14	4	32	2	10	8
22	1	18	8	37	2	18	6
27	2	4	5	42	3	8	2

ARTHUR SCRATCHLEY, M.A., F.R.A.S., Actuary.

Now ready, price 10*s.* 6*d.*, Second Edition, with material additions, INDUSTRIAL INVESTMENT and EMIGRATION: being a TREATISE on BENEFIT BUILDING SOCIETIES, and on the General Principles of Land Investment, exemplified in the Cases of Freehold Land Societies, Building Companies, &c. With a Mathematical Appendix on Compound Interest and Life Assurance. By ARTHUR SCRATCHLEY, M.A., Actuary to the Western Life Assurance Society, 3. Parliament Street, London.

Printed by THOMAS CLARK SHAW, of No. 8. New Street Square, at No. 5. New Street Square, in the Parish of St. Bride, in the City of London; and published by GEORGE BELL, of No. 186. Fleet Street, in the Parish

of St. Dunstan in the West, in the City of London, Publisher, at No.
186. Fleet Street aforesaid.—Saturday, June 12, 1852.

*** END OF THE PROJECT GUTENBERG EBOOK NOTES AND
QUERIES, NUMBER 137, JUNE 12, 1852 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.